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JOINT STANDING COMMITTEE ON ELECTORAL MATTERS

Inquiry into the 2025 federal election

(Public)

WEDNESDAY, 19 NOVEMBER 2025

BERKELEY DAPTO

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JOINT STANDING COMMITTEE ON ELECTORAL MATTERS

Wednesday, 19 November 2025

Members in attendance: Senators Colbeck and Grogan and Mr Laxale and Dr Ryan

Terms of Reference for the Inquiry:

That the Joint Standing Committee on Electoral Matters inquire into and report on all aspects of the conduct of the 2025 federal election and related matters, including consideration of the following:

- assessment and review of the purported increase in incidents of aggressive conduct, deliberate obstruction, and intimidating behaviour towards voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials;
- potential reform of safety and security arrangements, including consideration of the powers, processes, and capacity of the AEC to manage and address increasingly threatening or disruptive behaviour;
- the suitability and potential reform of measures to ensure universal voter access, including polling booth availability and location, early voting, remote polling, and postal voting arrangements; and
- the suitability of the current authorisation framework and requirements, having regard to the evolution of communication methods and technology.

The Special Minister of State has also asked the Committee to consider the interaction with the following:

- the implementation and operation of the electoral reform passed by the 47th Parliament, particularly regarding the use of money or capital in the most recent election;
- reforms to address the ongoing threats of interference in our electoral system, both foreign and domestic; and
- the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate.

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BERRY, Ms Carol, Member for Whitlam, Commonwealth Parliament

Committee met at 10:30

CHAIR (Mr Laxale): I declare open this public hearing of the Joint Standing Committee on Electoral Matters for the inquiry into the 2025 federal election. In accordance with the committee's resolutions of 4 August 2025, this hearing will be broadcast on the parliament's website, and the proof and official transcripts of proceedings will be published on the parliament's website. I remind members of the media who may be present or listening on the web of the need to fairly and accurately report the proceedings of this committee. We've got a number of committee members on phone link today, so we'll come to them for questions throughout the course of today's proceedings.

I now welcome Ms Carol Berry MP to give evidence today. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. Ms Berry, I now invite you to make an opening statement before we proceed to discussion.

Ms Berry: Thank you, Chair and members of the committee, for the opportunity to address the Joint Standing Committee on Electoral Matters as you undertake this important inquiry into the conduct of the 2025 federal election. I'd like to begin by providing an overview of my previous employment experience, because it's relevant to some of the observations I'll be making today around the treatment of some of the more vulnerable members of the community that I observed on polling booths during the 2025 federal election campaign.

Prior to being elected to the federal parliament as the member of Whitlam back in May I was the CEO of a large disability provider, the Disability Trust. The Disability Trust is one of the largest providers of disability services in Australia. I was responsible for an organisation supporting over 6,000 vulnerable people—people with disability—and we had a turnover of approximately $230 million and 3,500 staff. The mission of the Disability Trust is to create an inclusive world, and the trust predominantly supports people with intellectual disability, significant physical disability or psychosocial disability. I've worked with people with disability for over 15 years in a range of capacities, and prior to being the CEO of the Disability Trust I was the executive director of the New South Wales Council for Intellectual Disability, which is the peak advocacy body for people with intellectual disability and their families. I'm just providing this detail because I'm going to be making some observations around how I felt some more vulnerable people in the community navigated our polling booths in this election campaign.

I also worked for the Community and Disability Services Commissioner in New South Wales, and my projects included the oversight of the closure of large residential centres for people with disability in New South Wales as well as the establishment of Australia's first reportable incident scheme involving people with disability, which was to try and ensure that there were more appropriate responses to incidents of abuse and neglect of people with disability in New South Wales.

I also worked for the NDIS. I worked for the National Disability Insurance Agency on the rollout of the NDIS; I worked at the director level. I've also worked in women's health. I worked with Family Planning Australia and I was also the CEO of a local women's health centre, working with vulnerable women escaping violence and older women, as well as working closely with local First Nations women. So, in short, I would consider myself as having a lot of experience working with vulnerable people, particularly people with disability. I understand what inclusive and safe spaces look like for vulnerable people, and I've got a strong drive to protect and support vulnerable people in the community. I've also worked on many elections in my life. I've been politically active since my late teens and I'm turning 50. I turn 50 today, in fact.

CHAIR: Happy birthday.

Ms Berry: Thank you. I've worked on many, many elections and spent many hours on polling booths.

What I saw during the 2025 federal election campaign was different to anything I've ever seen before in any election I've ever worked on. I was very concerned by the conduct of people on polling booths regarding elderly people and people with cognitive impairments and other disabilities. Some polling-booth workers handing out electoral material, particularly for the Liberal Party, were insensitive to the needs of people with sensory issues, cognitive impairment and elderly people, and I was concerned by what I observed.

The polling booths were crowded, overbearing and overwhelming. I saw people with sensory issues visibly recoil as they approach the polling booths, as there was a sea of blue crowding the space, crowding people, with

booth workers standing right at the entrance of the polling-booth gates. At times, some polling-booth volunteers were bullish, intimidating and confrontational. I saw people with cognitive impairment being told how to vote.

On one occasion, I stepped in when I saw an opposition volunteer polling-booth worker remove electoral material from an elderly woman. She was holding electoral material; she'd been given electoral material from all of the different parties. She was a person who I perceived as being in obvious cognitive decline. She was very unbalanced on her feet. She looked confused. This particular polling-booth worker told this elderly voter, 'You only need this one.' He then removed all of the other material from the elderly lady's hands and left her only with a Liberal how-to-vote. The elderly woman looked confused and overwhelmed, and I told this particular volunteer that this was unacceptable and gave the elderly woman all of that material back, told her she had the right to vote for whoever she wished and assisted her by directing her to where she needed to go to vote. I've never seen anything like that in all of my years working on polling booths, and I was very concerned about it.

I also saw on one occasion a volunteer who was supporting an independent candidate confronting some of this concerning behaviour that she was observing as well. She ended up needing to call the police to complain because she was being filmed by a Liberal Party volunteer. That was post her issuing a complaint about his conduct.

As a candidate, the polling-booth environment—there was a particular polling booth where I handed out in Dapto. This was both the Dapto prepolling booth and the polling booth on election day. I was concerned about my experience as a candidate. I experienced what I perceived to be a hostile and bullying environment. It felt like there was a pack of men. It felt like there was a lot of schoolyard behaviour, and, due to the nature of this behaviour, I ended up remaining on the Dapto prepolling booth and also the election day booth for a lot of time because I was concerned about the situation escalating and I wanted to protect volunteers who were handing out for me.

Something that I found particularly tedious as a female candidate was a running commentary on my outfits—what I was wearing. I'd never experienced anything like this before on polling booths. I found this particularly inappropriate. I was jeered at and belittled. I ignored this behaviour, and I treated this running commentary as you would low-level, attention-seeking behaviour in a child. I ignored it, but it felt hostile, tedious, sexist and unpleasant. I decided to manage that polling-booth environment that was quite different to what I was used to—I decided to approach that by maintaining my dignity, and I encouraged booth workers on our team to do the same.

In my experience, when you encounter behaviour which has a very poor tone, the best response is to elevate yourself above that behaviour and set an example of how you think other people should be behaving. So that's what I did and that's what I encouraged our team to do. Certainly, I saw that tone of more appropriate behaviour also from other candidates, and I saw an appropriate lift in behaviour from other parties as well in response to what I can only say was quite poor behaviour on the part of Liberal Party booth workers. The atmosphere between all of the other parties and independent candidates that were represented was respectful, collegial and decent.

I'd also like to say that there were a number of election volunteers from the Liberal Party who I thought were perfectly appropriately behaved. But unfortunately there was this pack of people—there was a large number of them—who behaved very inappropriately on polling day. As I mentioned, it did feel like a gang of immature and hostile young men. I found out later that some of these workers were from the Exclusive Brethren, and there's been some further public comment in the media and elsewhere about the role that particular group played in shifting some of the dynamics on the polling booths that I worked on.

And, as I mentioned, not all the polling booth workers' behaviour was a problem. But for some of those volunteers it really was a problem. To begin with, there were far too many of them. It was overwhelming. It felt aggressive and unpleasant for voters and should not happen again. I had many members of the community complain about what they encountered, both during the campaign and afterwards. You could see that people really felt the need to debrief about their experience on polling booths. It did not feel like a standard election campaign, and I would encourage all candidates, moving forward, to revert back to their usual polling booth volunteer base. Those of us who have been working on election campaigns for a long time know that there's typically a bit of banter between parties, but it's in good spirit. This was something else entirely.

Our federal elections are among the most significant expressions of Australian democracy, and they rely on trust, safety, transparency and the shared belief that every voter should be able to participate freely without intimidation or undue influence. Today I wanted in these remarks to focus on two key issues—first of all, the apparent increase in aggressive, obstructive or intimidating behaviour toward voters, campaign workers, candidates and the AEC staff and, secondly, the adequacy of security powers and processes available to the AEC, particularly in light of changing community expectations and other emerging forms of disruptive behaviour.

I'd also like to speak on behalf of the vast majority of the community and voters who I think enjoy their experience of voting. It's critically important that we call out some of the behaviour that we've observed and that we find a way to once again reassert the standards that we expect for the majority of community members when they go to exercise their democratic rights.

I'm also speaking today to concerns raised specifically about the conduct of certain organised groups, including members of the Exclusive Brethren. It's important that we continue to have this dialogue and call out some of this behaviour in a way that is respectful and accurate. As I mentioned previously, there were widespread concerns regarding a rising sense of an overbearing presence and intimidation on polling booths during this particular campaign.

Unfortunately, across the nation reports were made regarding a noticeable increase in hostility around voting venues during this particular election campaign. These included instances of aggressive verbal confrontations, deliberate obstruction of pathways to voting centres, intimidation of volunteers handing out how-to-vote cards, and behaviour aimed at deterring individuals from engaging with the democratic process. Many of these incidents were isolated, but collectively they form a pattern that deserves close scrutiny. We had some engagement with electoral staff, where we spoke to AEC staff about the crowding and sort of domination that we saw as people tried to go in to vote. People were really swooped and swarmed upon. It was very unpleasant. We spoke to AEC staff about that, and it was clear that some of those powers were fairly limited in terms of what the AEC could do to respond.

And of course electoral staff are often temporary workers who are doing their best under difficult circumstances. They face situations where they're neither trained nor empowered to manage some behaviours effectively. Some volunteers, especially older Australians, reported feeling unsafe for the first time in their years of civic participation. Of course, this should concern every member of parliament, and I've heard a lot of discussion amongst members of parliament around that tonal shift that we observed in the 2025 federal election. A democracy cannot function properly when fear or hostility surrounds the act of voting.

The role of coordinated groups and organised influence caused a great deal of concern for many people in the community. Given that there's been quite a lot of media attention around this, hopefully political parties will be deterred from taking this course of action again. I think the opposition in particular paid for the approach that they took, overwhelming polling booths at the ballot box. As I understand it, this inquiry has received submissions and public commentary regarding those concerns about the conduct of certain groups, particularly the Exclusive Brethren.

It's important to note that many faith-based or community groups engage in political activity lawfully, openly, and respectfully. However, it's also important that we call out some of what we observed: a highly coordinated presence around certain polling booth locations, intensive campaigning tactics perceived as intrusive or overtly persistent, and behaviour that some voters or volunteers found intimidating or obstructive. I might leave my opening remarks there.

CHAIR: Thank you, Ms Berry, for your evidence and for sharing your experience. With your work history and political activity over many years I think it's important to hear your perspective on what happened down here in Whitlam. I want to ask you a few questions about people with sensory issues and cognitive impairment, as you've identified, because you're right: our democracy relies upon—and I think is strong and stable because of—compulsory voting and the fact that people can freely, fairly and without intimidation go and vote for whomever they wish. It was certainly my experience that people who told me that they had sensory issues or were neurodivergent didn't like the experience. I felt that they left the booth less likely to come back. Was this your experience as well? Do you want to go into that a little bit more? I feel that that's a slippery slope for us to go down, if people don't want to come back because they're scared or intimidated.

Ms Berry: For people with sensory issues, people with disability and elderly people—for many people—making the effort to go and vote is a really important experience. We've worked hard in recent years to ensure, particularly for people who might have previously been institutionalised, for example, that people are actually getting the experience of voting. For some people it might be the first time they've ever been to a polling booth to vote. These are really important reforms that we have made in recent years to facilitate voting.

What worried me, as someone who's had experience working with people with disability, is that I saw people approaching the polling booth and looking at what is a very overwhelming sensory experience—having too many people handing out, people closing in on them—and could see people visibly recoiling. Some people put their heads down and just tried to ram through while all these people were kind of in their faces. There was also a point at which people had to come in and—it was like running the gauntlet, really—the pathway narrowed. So I think it is really important that we think about everyone having a safe, pleasant, and ideally enjoyable experience of

voting and exercising their democratic rights and that we think about how we create polling booth environments that are safe and can be easily navigated by everyone.

CHAIR: We've heard evidence of an increase in the amount of prepoll voters. Did you find that the voting experience and even the candidate/volunteer experience was different in those two weeks of prepolling than it was on election day?

Ms Berry: Absolutely. What I found was that, across that whole period, we saw that some of those more intimidatory behaviours started to ease off—I think particularly because there was some media coverage of some of the tactics that were being deployed. You could certainly see some polling booth volunteers moderating some of their behaviour but not enough. Normally, the experience of handing out on election day and during the polling is long days. People work very hard, but it is largely positive. It did not feel the same. The tone had shifted, and certainly I was concerned about the wellbeing of the people that were working on my team. People give up their time. They care about democracy, and they're there to ensure that people get information in order to vote in a way which is informed. So, when you have crowding or intimidatory tactics, that means that people don't get that sort of fair option of being able to weigh up the people who are handing out as they approach the polling booth. More importantly, it's just an unpleasant experience. It's not just people with sensory issues who would have found that a very unpleasant experience. We heard from people from across the community saying that that was something they'd never experienced before and that it was very unpleasant.

To your point, Chair, we want to ensure that people actually do take up that option of voting and come into the polling booth and have a really good experience of exercising their democratic rights. So it's really important that, whatever comes out of this inquiry, we put in place some standards of behaviour that we expect on polling booths from everyone who hands out.

CHAIR: I can look this up if you don't know the answer, but do you recall how many prepoll locations there were in Whitlam?

Ms Berry: There were four prepolling booth locations in Whitlam.

CHAIR: Evidence we've heard from other electorates and individually is that, because over half of the people voted in those two weeks in small numbers of booths compared to on election day, it created this heightened atmosphere—plus all the extra presence at the booth adding numbers as well, be it from third parties or groups that you've identified. Do you feel that that sort of concentration led to some of that poor voter experience on the day?

Ms Berry: I personally think it's a positive thing that so many people are taking up the option to prepoll. Certainly for elderly people, in particular, who don't want to have to stand in lines for a long time or for people who are bringing a person with disability to vote, prepolling is a fantastic option. I don't think the dynamic of the numbers of people prepolling is the issue. I think it's that we need to reassert the standards of behaviour that we expect on polling booths so that people can have an enjoyable experience.

CHAIR: You mentioned the six-metre rule from the AEC. Do you feel like that needs to be reviewed for the next federal election?

Ms Berry: In all the previous elections that I've worked on, the AEC have come out and said, 'Here's where you can actually hand out.' Everybody's quite clear on that. Generally speaking, people observe the rules, and everyone gets on with the day. This was different altogether. There were probably people handing out who were not familiar with normal standards of behaviour when you volunteer for a political party. I think it's more important that we give the AEC staff some additional powers or an additional sense of authority in order to eject people from the polling booth if they are behaving inappropriately. I did see one AEC staff member who seemed quite clear on the powers that he had in that regard and was willing to exercise them, but for others it was less so. So perhaps some greater clarity is needed around the powers that those AEC staff hold—perhaps also some clearer interface with the police so that, if a situation escalates, they can move quickly. But, generally speaking, I think we need to reassert that election day is about the voters and their right to be able to vote safely and in a way which is enjoyable to them, without people getting right in their face. I think that's really important, moving forward.

CHAIR: It's been put to us that a code of conduct for booth participants be established and registered with the AEC. Is that something that you would recommend in terms of establishing behaviour?

Ms Berry: Absolutely. I think we also probably need clearer rules or expectations around the volunteer base that you're drawing upon in order to support your campaign. Traditionally, political parties and Independents will draw on volunteers who live in that community in order to support their campaign. We saw dynamics on the polling booths this time around where that seemed different. It seemed there were large numbers of people who

were being brought in from outside areas, and that completely changed the dynamic of the experience for people on polling day.

CHAIR: Thanks. I'll go to the deputy chair.

Senator COLBECK: I might start with the last point with respect to the volunteer base drawn from the community. A number of times, I've seen and experienced union members flown in from the mainland to Tasmania, where I live and work in regional Australia. How do you see the management of the volunteer workforce, if you like—although union members are being paid to be there. I've seen GetUp fly people in as well, for example. How do you apply something to that to manage that process?

Ms Berry: We need to apply a reasonable-person test here, in my view. I think all of us that have been involved in political campaigns for a long time know when behaviour has tipped into what a standard person and a reasonable person in the community would consider inappropriate. So perhaps it is not a question of who participates and who volunteers for election campaigns. But, in my experience, the raw numbers of people that were turning up to volunteer this time were beyond what most people would consider to be of a reasonable standard. I think what we all need to do as representatives of all political parties is to start applying some better standards around who volunteers for us and how they behave, so that we can still ensure that members of the community enjoy the process of voting.

Senator COLBECK: So, to your last point, who should be allowed and who shouldn't be allowed to participate?

Ms Berry: I think that you should be drawing on your volunteer base. But I think, where you have organised third-party groups who end up shifting the tone of people's experience on a polling booth, unfortunately, that lends itself to us needing to create rules around how people behave on polling booths. That's an unfortunate development, in my mind.

Senator COLBECK: I would agree with you on that. I've been involved in campaigns myself since the late eighties and early nineties, and so I've seen a fair whack in my time. Most of the time, booth workers develop a camaraderie, if they're working well. You made the point about numbers, how many do you see as an appropriate number? Supplementary to that, you talked about prepoll before, prepoll has concentrated things a lot. I think you said there were four prepoll booths in your electorate; in the electorate where I live, there were four or five, but it does tend to concentrate things a bit. I note your comments about what prepoll provides for the voter and I acknowledge that, but it does tend to concentrate people into a smaller number of locations than was traditional. I think there were 73, 74 polling booths in the electorate that I live in here in Tassie, so the numbers are way more spread out. How do you see that with respect to what you consider might be a reasonable number of people at a prepoll? It depends on the booth—

Ms Berry: Yes, and obviously on actual polling day there are often multiple entrance points. When it comes to prepoll, I think it's reasonable, and it depends on where people are approaching the booth, of course, but I would think four or five people on a prepolling booth is probably a reasonable number. On this occasion, I saw 15 or 16 people—

CHAIR: Per candidate, you mean?

Ms Berry: Yes, that's right. Per candidate you might have a maximum of four or five volunteers at any one time on your polling booth, so to have larger numbers of 15 or 16 people is over the top and overwhelming and intimidating for people.

Senator COLBECK: What are your thoughts around the concentration of people at a prepoll versus polling day? This goes to the point about how much of our electoral process we want to have on election day, which is a bit of an event, versus the time beforehand—we've had variously two, three weeks as a period for prepoll. How do you see those things balancing out?

Ms Berry: As I mentioned, I think prepolling is a good option for people in the community, and people obviously are taking up that opportunity. For voters voting in prepoll can be a similar type of experience to voting on polling day. Some people find it an inconvenience that they need to come along to the polling booth, but I think most people enjoy the process of voting, so to me there's no difference between prepolling and polling day for your average voter. Their experience at prepoll should be similar to their experience on polling day. Some people miss—they regret if they come to prepoll that they don't get to go along to the sausage sizzle or the P&C cake stall. Those are traditions which people enjoy on polling day. But I think for most people that option of prepolling—making sure that our behaviour is civil and appropriate as political parties on prepoll just like it is on polling day. I don't think that is the issue having a prepoll option. I think the issue is that people need to maintain reasonable standards of behaviour at the prepoll just like we would on polling day.

Senator COLBECK: I couldn't argue with you on that. I go to your point about how that might be applied and whether or not it's an appropriate move for the Electoral Commission to get involved in that. In this case, to the point that the Chair made with respect to the six-meter rule and what happens outside of that and the Electoral Commission's limitation, or jurisdiction, which they don't have outside the six meters, as to what are the appropriate mechanisms and management there. I agree with you that I think it's disappointing that we're even having the conversation, but I've seen instances of it over a long time, so it's obviously going to occur. I'm curious as to the desirability or otherwise of actually getting the Electoral Commission involved with that, rather than other appropriate authorities.

Ms Berry: Even though we'd had some of these dynamics at prepoll, I observed on polling day that, as I mentioned earlier, there had been a pulling-back of numbers and some of the more intimidatory behaviour which I'd observed during prepoll, and dynamics had largely resettled. So I take your point. I think probably what we need to do is ensure that the AEC are clear on some of the powers that they have to ask people to leave the polling booth when there have been reports of concerning behaviour. And we probably need some clear guidance around what some of those concerning behaviours might be. They might include harassing voters, removing from the hands of voters the election material of other parties—unfortunately, we have got to that point—and directing people how to vote beyond what is reasonable. We could probably outline some standards of behaviour and some guidance for people who hand out at polling booths and also some standards for AEC staff so that they can move to eject people if they're not behaving in accordance with public expectations.

Senator COLBECK: Do you think that's a role for the AEC, or do you think that's a role that the parties themselves should manage? Your party, the Labor Party; mine, the Liberal Party; the Nats; the Greens—we all have structures that provide an organisational set-up around the conduct of a poll. In my view, somebody who's not behaving in a decent manner actually diminishes the value of me having that person at the polling booth, to be frank. Rather than getting the Electoral Commission to do it, do you think it would be better if there was a level of engagement through our organisational structures that manages that as parties? I think then the message goes through the system of the organisations—that we're all looking to see best behaviour and appropriate engagement with the electorate. I think the sentiment that I get from you—and I would agree with it—is that aggressive behaviour isn't conducive to attracting votes.

Ms Berry: To change and moderate behaviours, given that political parties can't always police the behaviours of their volunteers at all times, I think the best thing we can do is outline our expectations and the culture that we expect people to adhere to on polling booths. But you would hope that a lot of those expectations would have already been clear within political parties already, and we had this aberration that occurred at the 2025 election. So, if we're expecting political parties to set standards and maintain standards, we had a failure happen at the last election. Hopefully, we can all learn from this and people don't do that again—so that we think about the voter, respect the democratic process and put that as our benchmark for what we expect of ourselves.

But I also think we need to give AEC staff some clearer powers, some clearer expectations, and probably it needs to become compulsory that we all distribute to the volunteers who hand out for us what those behavioural expectations are. Those behaviour expectations should be set centrally by the AEC—a code of conduct—and then they can actually implement those expectations so that, if there are reports of inappropriate behaviour at a polling booth, then it's very clear to everyone involved: 'You've received a paper which says, "This is how we're expecting you to behave," and you have failed to behave in this way, so now you're going to be asked to leave the polling booth.'

CHAIR: Senator Grogan, did you have any questions?

Senator GROGAN: I'll just follow up directly on that code-of-conduct issue. Oh, and happy birthday, by the way.

Ms Berry: Thank you.

Senator GROGAN: You've talked about potentially limiting the number of volunteers on polling booths to say, four or five per candidate, and you've referenced the code of conduct. Do you feel that you would require both, or do you feel that the code of conduct would be sufficient to cover the issues if, of course, it was structured to cover all the key things? Do you think you would then still need a limitation on numbers?

Ms Berry: I don't think having a limitation on numbers is an ideal way to go, to be honest, because, if you have four or five people and they're behaving badly, then you've still got the problem. As I mentioned, parties need to apply what is reasonable. We all respect the democratic process. We've probably got the best democracy in the world. Therefore, we need to move to protect it. I don't think numbers are necessarily the issue. I think it's the standards of behaviour and respecting democracy that we need to reinforce.

Senator GROGAN: Would you see a code of conduct as something that each volunteer would need to sign when they arrive, to actually commit themselves to it, or would you see it more that volunteers be registered with a candidate, and then for that list to be provided to the AEC? Do you see any benefits or disadvantages with different methodologies there?

Ms Berry: For most parties who have volunteers, you provide them with information—a polling kit, for example. That's probably the most sensible and practical way to do it—given there are a lot of moving parts in any election campaign—particularly for smaller parties or particularly for Independents, who are a really important part of our democracy. I think ensuring that all candidates are clear on what that code of conduct is, and that it's really on the candidate to ensure that in some way they're informing their volunteer base about the standard of behaviour that's expected, is probably the most practical way of doing it. AEC staff are already very busy on election day, and I'd worry about adding to their tasks. This requirement should be on political parties and candidates themselves to ensure that their volunteers are upholding respect for democracy.

Senator GROGAN: What would you do with third parties? I know Senator Colbeck referenced GetUp! as an organisation that doesn't necessarily support a party but supports people voting for particular issues. How would you see those guys being regulated?

Ms Berry: I think the best way to protect our democratic process moving forward is for there to be cultural expectations around behaviour. I don't necessarily think that having third parties focusing on election campaigns and distributing election material is necessarily a bad thing in itself, as long as it doesn't get out of control. What we saw in the 2025 campaign is that it got a little out of hand in terms of how people experienced voting. In order to have a robust and diverse democracy, it is reasonable that we have other people come in to hand out material around issues that they care about. But it's the way that they behave that really matters.

Senator GROGAN: I just have one quick issue I just wanted to touch base on. The operation of mobile polling booths such as in hospitals, aged-care facilities, prisons et cetera—how did they operate in your electorate? Were you aware of what was occurring there?

Ms Berry: I was aware of some mobile polling opportunities for people who live in age care or who were at the time in hospital, but I was not across the detail of that, I have to confess.

Senator GROGAN: Did the AEC advise you or offer you an opportunity to send people along?

Ms Berry: I don't believe so, on this occasion.

Senator GROGAN: Okay. Thank you so much. I really appreciate it.

CHAIR: Thank you, Ms Berry, for your attendance today, and happy birthday. If you've been asked to provide any additional information, would you please forward it to the secretariat by Friday 5 December. You'll be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any transcription errors. We really appreciate your time. We know how busy you are, but I think your evidence was really important today, so thank you.

Ms Berry: Thank you.

PEARCE, Mr James Harold (Jim), Private capacity

[11:17]

CHAIR: Welcome. Do you have any comments to make on the capacity in which you appear?

Mr Pearce: I'm a life member of the Labor Party.

CHAIR: Nice to see you. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. Mr Pearce, I now invite you to make a brief opening statement before we proceed to discussion.

Mr Pearce: Briefly, I want to refer to something that I dealt with at the end of my submission at paragraphs 32 and 33, which is the use of plastic wrap. I couldn't see how it could fit into the terms of reference of the committee unless I was to say that the presence of plastic wrap made people behave more aggressively on the polling booths. I could perhaps almost say that—but I know that everybody hates it. We've just done a by-election down here in Kiama; nobody had it, and it's a much more satisfactory arrangement. If it's within the terms of reference, I'd strongly urge the committee to take some action to prohibit it. Whether that can be done in terms of the implied freedom of political communication, I don't know, but, personally, as a lawyer, I think it would be appropriate. Certainly, it would burden it, but it would be appropriate.

The other thing about plastic wrap that I didn't mention is that, because there's a possibility of plastic wrap, we're getting more and more freestanding signs on the footpaths outside polling booths, and that's done because, if you think you can't get on the fence, you've got to get somewhere with your sign. One of the things that happens then, of course, is that it congests the booth and people trip over it. When it gets windy, they all blow over as well, which produces a bit of excitement, especially at the Albion Park prepoll, where it can get windy sometimes.

Just briefly, the other thing I wanted to say was that I've been doing this for 50 years and I think Australian democracy is in a pretty good place as far as elections go. When I first started doing it, it was pretty depressing. We had gerrymanders—well, I thought we had gerrymanders and those sorts of things. I just wanted to say to this committee and to other committees like it that you've done a very good job in terms of gradually reforming the procedures we have here.

As I see it, the essence of it is to get the maximum number to attend. I call it 'compulsory attendance', not compulsory voting, and I explained that in the submission. We want to try and limit the informal vote, but there will always be some people who are going to vote informally because they want to vote informally, and there's nothing you can do about that. If they want to do it, that's their absolute democratic right. I think now we've got to a situation where we have fair and independent electorates.

The Senate will always be what it is. It's a gerrymander in itself, but that's part of the Constitution. I have one last comment about the Senate. People complain about people getting elected and then becoming Independents or jumping ship, and a lot of that's been happening. I noticed that even a Green jumped ship to the Labor Party, but I can't see what can be done about that, because individual members have always got to have their conscience. I'll tell you that there's a lot of support out there in the community that would say that, if somebody walked out on their party, there should be a by-election. But I don't know how you're ever going to have a by-election for the Senate—it would just be so problematic and expensive—and I don't think a recount would make any sense either.

The only other thing I wanted to mention was that I'm very concerned about what I call the 'exhaustion informal', because it was a big feature down here in Whitlam. Personally, I think optional preferential voting is the best system, but I don't think I'll get much support here, and I didn't come here to convince you of that anyway. They're all the comments I'd like to make in opening.

CHAIR: Thanks, Mr Pearce. I look forward to the two senators online responding to your Senate gerrymander comments, but maybe they might let that one slide. I'll refer to some of your submission, which was very detailed. Thank you for taking the time to write that. You proposed, in your submission, creating an AEC managed protocol requiring booth captains to more or less have the same requirement to lodge with the AEC as scrutineers do. What issues do you feel the formalising of that booth captain role would overcome?

Mr Pearce: I think it would provide a focus for contact. Most good presiding officers seek out the booth captains early on and talk to them, but some don't, in my experience. I think that's one thing, and the booth captains would have some responsibilities—just as scrutineers have responsibilities, they can't run around berserk in the polling booth after the doors are shut. So, there'd be some responsibilities there on the booth captain in

respect of booth workers. I'm not proposing that they should be going around effecting citizen's arrests on people or anything like that. I think it would provide, perhaps, a first point of contact—if a Labor Party booth worker is misbehaving, sometimes the booth captains don't notice it if they're busy—for the presiding officer to know who to come to and say, 'Look, this person's out of order,' or vice versa.

CHAIR: Do you think it would then be on that booth captain to say that a member of their volunteer workforce was identified as misbehaving? Would it be on that registered booth captain to then rectify that behaviour or eject them from the booth?

Mr Pearce: Yes. I think, in the first instance, you tell them to leave, and in the second instance—I'm not suggesting that they effect citizen's arrests in the third instance. Can I make a plea. I wouldn't want a booth captain to have to wear those bloody fluoro vests.

CHAIR: Sure—maybe an armband like they do in football.

Mr Pearce: Yes.

CHAIR: Do you think there's any risk to that? Do you think it would be harder to get booth captains if they had to go through a formal process like that?

Mr Pearce: Yes. I don't think everybody would do it—that everybody would be in on it. It might well be that some booths would finish up with only a Labor booth captain, and some booths would finish up with only a Liberal booth captain. Nevertheless, it would be an improvement. I'm not so silly to think that all booths actually have booth captains, especially when you get into the countryside. But, yes, I do.

CHAIR: We've had a lot of evidence about a code of conduct for volunteers and participants, to address some of the behavioural issues we've heard of from around the country. Do you think that would be an improvement to voters' experience?

Mr Pearce: I hope so, yes. I think so. It's really all about the voter. I hardly ever discuss politics in the polling booth unless people ask me. All I say is, 'Labor how-to-vote—would you like a Labor how-to-vote?' That's really your role. I must say I always discourage booth workers from discussing politics, because half the time they don't know what they're talking about, even if they're members of the Labor Party. At other times, even if I knew what I was talking about, I might not necessarily agree with what the Labor Party's position is, so I'm better to shut my mouth.

CHAIR: You've had the experience—obviously, everyone here has, and Ms Berry before had as well. What we've heard from the AEC but also from others is that there was a big increase in new participants at this election. The AEC identified 130 single-issue groups or third parties. To what extent do you think that third-party involvement from new entrants had an impact on some of the feedback we've been discussing?

Mr Pearce: I'm now mostly talking about the Exclusive Brethren.

CHAIR: There have been many identified in the submissions, but Ms Berry—

Mr Pearce: I know there were other groups. We had the wind farm people. I didn't see them on any booths, actually, but I suppose they must have been on some of the booths in Whitlam; they were very vociferous. Can I talk about Albion Park prepoll, where I did the morning and Alison Mansell did the afternoon. We were lucky there—and unlucky; it's terrible there. You can trip over concrete there quite easily. I drew a map of it. I can pass it across. It has a front entrance, like all polls do, onto the street, but, in the middle of it, it's got two big garden plots, so you don't have as much opportunity for blocking or for large numbers of people there, though they can become very concentrated once you get on the western side particularly, when they come up the lane. But you just don't have quite as much opportunity.

I think I was pretty lucky at Albion Park. I do not think the booth captain there was Exclusive Brethren. He wasn't a local—he came from up on the mountains; there's a bit of a geographic division in the seat—but he was from the electorate. I formed the view that he probably wasn't Exclusive Brethren because, when the candidate came down, he spoke to him at length—not that I overheard it, but they were talking about Liberal Party internal matters. I was pretty lucky, and, when I said to him, 'This is a problem,' he just moved them on. But I think, unfortunately, he may have moved them on to Shellharbour, which I hear had more problems than we did. Incidentally, in Shellharbour, there's a fairly open approach to the polling booth, from memory, so you don't have the benefits or the disadvantages of those gardens plots. I used to hate them, but, on the basis of this election, I'm coming to rather like them.

CHAIR: Right. So they acted like a kind of guide—

Mr Pearce: A barrier, yes.

CHAIR: A barrier—so that was a bit more of an orderly approach. Your submission talks about money influencing elections, and, from what I understand, you don't want to see billionaires spending money on elections. What was your experience down here at Whitlam? Do you feel that there was an increase in the amount of material and the amount of money spent?

Mr Pearce: Oh, yeah. I mean, you had this party that just came from nowhere, Trumpet of Patriots. Everybody there, if they weren't related to Clive they were working for him or doing something, or he had a lot of candidates running in seats where they didn't live. The only purpose I could think of for them to do that was to make a nuisance, to block the operation of democracy, maybe to block the operation of Labor Party—to block everybody, actually. I didn't think they were doing anything for the Liberal Party this time around either. I think that's a problem.

But the problem that I identified is that, the more candidates you get on a ballot paper, the higher the number of informals—and the informals tend to concentrate in the Labor booths. That was particularly so in Whitlam. We've seen this happen overseas. I think that if it's in the terms of reference then the committee needs to address this somehow, because the opposition leader in Canada lost his seat in the first-past-the-post system, which was probably the easiest or hardest one to sabotage, with 79 candidates or 81 candidates.

I think it will come here. I don't want to—we've got privilege, haven't we? I wouldn't put it past Clive Palmer or somebody else to say that it's a much better way to spend money by nominating 30 candidates in Whitlam than by spending all the money putting up all these signs and paying for all this advertising and whatever. I can say that in Whitlam I reckon that if we'd had too many more candidates the informal vote would have been even worse. For those booths that I've identified, the actual Labor heartland in Shellharbour, there was a dramatic increase. And then, as a control, I went and looked at those booths that have been redistributed to Cunningham and where there were only five candidates—last time we had five or six—and there hadn't been the same increase in informal.

CHAIR: How many candidates were there in Whitlam in the last election?

Mr Pearce: There were only five or six in Cunningham, I think.

CHAIR: Cunningham. What about—

Mr Pearce: And there were five or six last time, when Stephen Jones ran. So I used them as a control group and I found that the informal hardly went up at all.

CHAIR: And this time, how many were there?

Mr Pearce: I think Berkeley was taken out of Whitlam and the increase in formal was about one per cent, compared to other places where it was 11 per cent. I don't know what the solution is. I did suggest that since we really no longer have compulsory preferential voting in the Senate then maybe we should no longer have compulsory preferential voting in the House of Reps. Make it six, like we have in the Senate; if it's good enough for the Senate, maybe it's good enough for the House of Reps. If we don't do something it's going to be a very big problem at the next election, and not just for the Labor Party.

I think I could do this in Maranoa. Maranoa occurs to me as a seat where you could run about 30 candidates and you could quite easily unseat the leader of the National Party. There are certain seats where the tactic would work both ways. I don't suppose it'll work in Teal electorates. They're inherently better voters; there are fewer informal voters there. The other thing I can say about informal voting is that hardly anybody I see these days is about trying to vote formal. In the 1970s I used to weep. You'd say, 'There's one of ours gone' and whatever. Most were ours, but the Liberals would weep with me at the ones they'd lost. There's a perception out there that, even with compulsory preferential voting, if there are eight candidates, you only have to vote seven times. That mightn't be a bad change either, to make it one fewer on that basis alone. That's spread by people in the community.

CHAIR: I think those votes are already accepted. If the last number's missing and the rest are clear, I think they accept those votes. That's my understanding, but we'll ask the AEC.

Mr Pearce: That'd be done by the experts if it was ever close the next day.

Senator COLBECK: Congratulations on your membership of the Labor Party. I'm on the other side, but I acknowledge people who give a lot of service to their organisations. Thank you for your submission and your expression of experience, too. What you bring to the conversation we're having today is important. In relation to the conversation you were just having with the chair around what constitutes a formal vote, you made reference to six votes being a formal vote. Here in Tasmania, where our lower house system has multi-member electorates and each electorate has seven people elected, an elected seven constitutes a formal vote. If we were to make the

change that you're considering, particularly in the context of limiting informal votes—which is what your concern is, if I've got you correctly—what sort of number would that be? Again, you've said six. Does that work in terms of, say, the number of candidates?

Mr Pearce: I said six because I thought it's consistent with the Senate. There's no rational number, really, is there? In the conversation with the chair, it did occur to me to mention the fact that—I must look that up. I'm retired now. I was only ever paid to read legislation, so I often don't read legislation if I'm not going to be paid. It's a mercurial view. I think six; I mean, if six is good enough for the Senate, why shouldn't it be good enough for the House of Reps?

Senator COLBECK: Okay. If there are more than six candidates, would that be satisfactory for the recognition of a formal vote, to actually minimise the number of votes?

Mr Pearce: Yes. In this Kiama by-election, which was optional preferential, we had 13 candidates; by-elections always do draw lots of candidates. In my scenario, if there were 10 candidates and people wanted to vote for all 10 of them, that's a formal vote. But if they only want to vote for six, that's a formal vote. I think it makes it just a little bit easier, perhaps, to vote, although I hope I'm on the right track there.

Senator COLBECK: It's an interesting exercise. The proportion of people who might take that up is an interesting discussion because if I look at below the line voting, for example, in the Senate in Tasmania, compared to other jurisdictions—and the size of the ballot paper does have an impact in this context—in Tassie, where we have a system of multi-member electorates for our state parliament, 20 per cent of people vote below the line for the Senate versus two or three per cent in other jurisdictions. So there are other influences on behaviour in relation to how that works. The Senate and the lower house in Tasmania have six for the Senate and seven for the Assembly, which both match the number of people to be elected out of the electorate as a formal vote. So there's a rationale to the number.

Mr Pearce: That's the Hare-Clark system, isn't it? There are seven to be elected from each multiple member electorate.

Senator COLBECK: I won't try to inflict Hare-Clark on people on the north island.

Mr Pearce: I'm not in favour of multiple member electorates in the lower house, I should say. You finish up with members covering huge areas who don't know one end of their electorate from the other. It works quite well in Tasmania, I think. Or maybe it doesn't. Sorry.

Senator COLBECK: Tasmanian people didn't like it, that's probably the best statement I could make. Just in the context of the Senate, you've talked about people skipping parties, and I think members of parties—Labour and Liberal—would have a view on that not necessarily favourable towards the process. But in terms of the size of the parliament, you've seen plenty of elections and you've looked at process—there's discussion about increasing the size of the parliament, which would increase the size of the Senate as well. Do you have a perspective on that as to where that might go? You talked about multimember electorates and your view on that. My question goes to the hurdle that there is, if you like, or the bar that needs to be crossed to become a member of parliament and where that might sit. If we change the number of senators from, say, six per state to seven, for example, that reduces the quota proportionately. Do you see that there should be a reasonable bar to achieving a seat in the parliament?

Mr Pearce: Germany uses five per cent don't they? They have a mixed electoral system—some local seats and some collective seats—and they use five per cent. Israel has no bar at all. I was in Jerusalem during an election in 2012 and somebody decided to form a pensioners party and all seven of them got elected. And when they got together, they didn't have any clue what they stood for in any way. But every vote in Israel that's cast—they're probably the most democratic system in the world, if you allow for the fact that some people don't get to vote at all. Look, that's something that I think this committee is better able to deal with than me having an opinion on it. It depends on the electoral system, doesn't it? In New Zealand they have the combined system. Do they have a minimum number? There's some requirement. You can't get a seat unless you either have a lower house seat or some cut off point, don't they?

CHAIR: I'm not so sure about that system.

Mr Pearce: If you want to go down that road, perhaps a place like New Zealand would be a place to look.

Senator COLBECK: Just with respect to your comments around the wrap and signage, how would you propose that be managed? It would be a matter for the parliament to consider, but what's your perspective on that? Because you go from where we sit at a federal level where it's pretty ubiquitous to, for example, in Tassie, where no signage within 100m of polling booth on polling day is permitted. There are examples of extremes within the country. I'm just interested in your perspective on how you manage that?

Mr Pearce: I think it has to be uniform. If there's things that are particular to Tasmania, they have to be taken into account in developing it. That's my view. If there are things in there that are particular to Tasmania, well, they won't cause a problem at Balarang.

CHAIR: Senator Grogan.

Senator GROGAN: A lot of the things I was interested in have been covered, Mr Pearce. I just have one issue, but first let me say thank you for taking the time to provide a submission and for coming to talk with us today. I shan't take your comments about the Senate personally. I will agree with you wholeheartedly on the plastic wrap. Given your breadth of experience, I'm interested in what you think builds a harmonious environment on a polling booth. You've said that you didn't really see aggressive behaviour, but you did see a significant tick up in the number of volunteers on the booths. There's been some commentary about the number of signs—the cluttered and overwhelming appearance of those booths. In your experience and with all of what you have done, do you feel that there's a set of standards around creating an inviting and inclusive environment at a polling booth?

Mr Pearce: I think that what improves it is—I might be a biased booth captain talking—respecting each other. You don't discuss politics—that's a waste of time, obviously—but you respect each other. This fella that we had at Albion Park—I was lucky—I respected him, because at one stage we had an issue with a libertarian who was a bit too enthusiastic, and I said, 'He's yours.' If there's a Green, they're mine to talk to. I think respect is quite important.

Also, going back to the Exclusive Brethren, a lot of them didn't know what to do on a polling booth. One young lady kept saying, 'Have you got any other questions?' and I said to her, 'Don't ask that question. People don't want to be asked at the polling booth if they've got any more questions. They're just here to vote or not vote, or do whatever they're going to do.' So I think one of the problems there was that these people felt that they should be doing something useful. In fact, some of them were probably doing things that were useless. We had two young ladies walking up and down the street holding up a sign for the Liberal candidate. People thought, 'What's the point of that?' Does that answer the question?

Senator GROGAN: Yes. A lot of suggestions have been put forward around how to ensure that we protect our democracy and ensure that going to a polling booth remains an okay thing to do—something that people aren't anxious or nervous about in terms of what they might find when they get there. We saw all sorts of interesting behaviours in this last election that we've not seen before, and that's deeply alarming for many of us who feel that we have a democracy that we should be proud of and that our polling days should continue to be more of a carnival than a car crash. I was just really interested in what other environmental factors might assist in that, so thank you very much. I appreciate it.

Mr Pearce: At Balarang we don't have a barbecue; we have cakes. The Parents & Citizens make cakes, and I think that's always helpful too. They're a success, because I've never been able to get a cake there. By the time I go looking, by lunchtime, they're all sold.

CHAIR: That code of conduct should have a chapter on food at the booth! Dr Ryan?

Dr RYAN: I'm interested in—you're obviously very experienced in the conduct of elections—whether you had any insight into any concerns regarding the polling at aged-care and other facilities. I know we've been talking about prepoll sites mainly, but I was wondering whether that mobile polling has been a concern to you in any way.

Mr Pearce: I don't do that anymore. I'm not going to bore you, but I can tell you some really funny historical stories about polling in nursing homes. This was right back to Bill Morrison's time. The matrons used to—I think some people know what the matrons used to do. You'd get phone calls saying, 'Send a Labor person down to help me vote.' I remember having to pick up this guy who'd rung from a telephone booth, because he escaped out the window with the vote. But, unfortunately, the matron got his trousers. He was last seen running down the street wearing his boxer shorts, and he was hiding in the telephone booth. But that was a long time ago. I don't know anything much about that anymore, I must say. I know there's got to have been an improvement on what it was then, that's for sure.

Dr RYAN: I'll take that, thank you. One thing we've heard from a number of electorates is concerns around the AEC's inability to mandate any sort of behavioural standards beyond the six-metre line and concerns as to what should be done in those instances where we do have contretemps or aggression or bad behaviour by people involved in various campaigns outside of that six-metre line. Do you have any thoughts about that?

Mr Pearce: Yes. I think they've got to be warned and sent away. If they were my booth workers, I'd be very firm with them because you lose votes. Most Liberal booth captains I've worked with hold the same view, I can

tell you. Some people just don't have a clue about what's appropriate at a polling booth. You try and be diplomatic at first, but then you've just got to tell them to go. It's better if the party tells them to go than the AEC, but the AEC, ultimately, will have to tell them to go. You might get a mutiny.

Dr RYAN: Do you think that a code of conduct for candidates and their representatives on campaigns would be a reasonable thing to institute?

Mr Pearce: Yes. I think that's obvious, really

Dr RYAN: Alright. Thank you very much. No more questions.

CHAIR: I'd like to thank Mr Pearce for your attendance today. If you've been asked to provide any additional information, please forward it to the secretariat by Friday 5 December. You'll be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any transcription errors. Thanks for your time today.

Members, I have a motion that submissions 130 to 144 be received and approved for publication. Deputy Chair, are you happy to move that?

Senator COLBECK: It is so moved.

CHAIR: Thank you very much. I declare it carried. I now suspend proceedings.

Proceedings suspended from 11:52 to 12:31

BROWN, Mr Matthew, Private capacity

EDGAR, Mr Robert, Private capacity

GRAHAM, Mr Jeremy, Private capacity

HANNAH, Mr Ross, Private capacity

MANSELL, Mrs Alison, Private capacity

NEWLOVE, Ms Penelope (Penny), Private capacity

QUINN, Ms Ailis, Private capacity

VANDERZEIL, Mr Simon, Private capacity

CHAIR: We'll now proceed with this afternoon's community session. Participants in this session have been invited to give a five-minute statement to the committee. I'll invite participants to come to the table one at a time to give their statement and then remain at the table briefly to answer any questions from the committee before we proceed to the next witness.

Although the committee does not require you to give evidence under oath, I should advise participants that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege.

I now welcome Mr Bob Edgar to give evidence today. Mr Edgar, do you have any comments to make on the capacity in which you appear?

Mr Edgar: I'm here as a participant in the electoral process as a volunteer for the Labor Party. I've been to many elections over the years—local, state and federal.

CHAIR: Thank you. I now invite you to deliver your statement before we proceed to questions.

Mr Edgar: Australian elections are renowned for being very civil, with opposing views being politely rebutted, though this most recent election seems to have changed that landscape, in that a particular party, the Liberal Party, bussed in volunteers who were evidently not politically connected people but were there purely to make up the numbers as spoilers. Very few of them were actually politically connected at all. None that I spoke to identified themselves as Brethren, but it was very clear that they were not there to engage in the democratic process—not to vote themselves but to promote the Liberal vote with no regard for general convention and the AEC rules.

I suggest that there should be a curb on the number and the size of corflutes at polling places, and safe access for voters should be a priority. Also, I suggest that two weeks prepoll was probably a bit of a stretch for many volunteers. Some are part-time workers and some are pensioners, and that made it very difficult to keep enough people at the prepoll day after day. It was quite taxing, I thought.

On polling day, when I went in to vote—I like to vote on the day itself; there's a sense of occasion—I was very careful to borrow a jacket to cover up my red T-shirt. While standing in line inside, I noticed someone in a blue T-shirt up in the actual polling booth casting a vote. I think the AEC should have picked that up.

Also on the same day, one of my people there witnessed a voter walk out of the polling station with a ballot paper to consult a volunteer for one of the minor parties and then walk back inside with that ballot paper. I was a bit concerned and a bit perplexed as to how that might have come about. It's something for the AEC to tighten up on perhaps.

At the end of the day, the voting material is generally removed by most participants, but I have witnessed in the past where a lot of corflutes and the like are left for the people at the polling station to clean up. Usually that's a public school, so I've witnessed overflowing bins and that sort of thing. I think there should be some regulation or protocol around that.

Getting back to the issue with the Brethren—let's call them that—I think there should be some curb on who is allowed to participate in the process and to what extent. People who I spoke to were actually bussed in from up to two hours away from the polling station, so they're clearly there as spoilers rather than participant.

The amount of material that has festooned the streets and the polling places, I think, needs to be cut back a bit—from an environmental point of view, for sure. I've witnessed many corflutes placed in illegal places: on

fences on public property, on bridges and obscuring road signs. I think there should be more authority given to councils to be able to remove that material and fine the offenders.

That's pretty much it from me.

CHAIR: Great. Thanks, Mr Edgar. You mentioned, in your submission, that behaviour was taken to a new level, and then, in your statement just there, you mentioned that all the new participants kind of weren't aware of the conventions around usual behaviour, and that's pretty consistent with the evidence that we've got. I think we get into a tricky situation if you ban people, because we do have a constitutional right, but it seems so far that the evidence is that new participants, who either weren't aware of the rules or conventions or perhaps aren't accountable by having their name on the ballot paper, led to some of these problems happening. With your experience—I'm assuming you've done this for a while—do you think there needs to be more treatment of these third parties and newer participants in the electoral process, because it seems like that's where a lot of the problem lies? How would you treat it? Would you have a code of conduct? Is it the parties' responsibility to train them?

Mr Edgar: Initially, it's up to the parties to fill them in and tell them what the protocol is.

CHAIR: Yes.

Mr Edgar: Then, at the prepoll and on polling day, it gets down to the AEC to enforce the regulations like the distance from the polling station entrance, the number of signs blocking the path and that sort of thing.

CHAIR: Yes. Did you find that access was disturbed by the amount of signage?

Mr Edgar: Yes.

CHAIR: You mentioned in your submission this race to get it all done. Did that increase the temperature of the behaviour?

Mr Edgar: It did.

CHAIR: Talk to us about that. What was your experience at the booth? Just signs everywhere?

Mr Edgar: Yes, it was swamped with signs and A-frames, and the fences were just totally covered with one party's material, not leaving any space for others. A bit of civil behaviour and protocol can stop that.

CHAIR: Was it stopping access for voters to get through?

Mr Edgar: It's not stopping access.

CHAIR: Not stopping—right.

Mr Edgar: There are elderly people and disabled people that need clear access, a clear path.

CHAIR: We've had evidence that volunteers or booth captains should register with the AEC, just as they do for scrutineering.

Mr Edgar: Yes.

CHAIR: Is that something that you feel would help treat some of the behavioural issues you've identified?

Mr Edgar: I think so, yes.

CHAIR: Do you see any risks in doing that, in terms of people perhaps not wanting to register and therefore not participating?

Mr Edgar: Well, if they're not wanting to register, perhaps they're not there to take part in the process.

CHAIR: Good point. That's it from me. Deputy Chair, are you online?

Senator COLBECK: Yes. I want to follow on from the chair's comments in relation to third parties. How do you determine who can and who can't participate in an electoral process where we have, effectively, a pretty good system, where we have a free and open franchise?

Mr Edgar: That's probably a bit of a broad statement. I think, in the main, people who are participating at polling booths and prepoll are members of their particular party. I think it behoves the booth captains and the actual parties to select people who fit that criteria—those who are members of the party and genuine supporters rather than outsiders.

Senator COLBECK: I don't argue with you in that context. Quite frankly, we've had some evidence, which you are repeating, and I would concur with that. A booth captain or somebody senior on a booth as a candidate or an elected member should be keeping an eye out and making sure that there's a congenial environment on the polling booth.

Mr Edgar: Yes.

Senator COLBECK: From my experience, for example—and I'll acknowledge we're on different sides of politics here—getting on well with other people on the booths is always something I've tried very hard to do, but, sometimes here in Tassie, we get union reps shipped in from the mainland to participate on the booths, and my view is that the environment on the booths is different on the north island to what it is down here in Tassie. We've had GetUp send people in from the mainland. We haven't had Climate 200 yet, but I'm sure that's part and parcel of what's occurring in certain seats around the country. Someone mentioned this morning Trumpet of Patriots. They're a new addition to the world as well in terms of the political process. But how do you effectively manage who can and who can't participate in an electoral process when you've got such a dynamic situation with respect to participation as candidates, for example? There are a lot more candidates running as well. So, apart from appealing to people's better values and judgement, how do you actually manage this?

Mr Edgar: It's probably up to each party to draw up a statement of protocol—dos and don'ts, basically.

Senator COLBECK: In earlier evidence today, a very experienced member of the Labor Party indicated that, if people are behaving badly, it's not conducive to attracting votes, and I would agree with that myself. So ensuring that everyone is 'playing nice', if you like, would be an important part of how we conduct ourselves on the booth.

Mr Edgar: I'm sorry, what was the gist of the question?

CHAIR: Could you repeat that question, please?

Senator COLBECK: I think I'm basically agreeing with your last statement that ensuring we self-regulate and that the parties play a role in ensuring that people are behaving on the booth is an important part of how we manage election day and prepoll.

Mr Edgar: Yes, that's important, too, for the parties to manage that.

Senator COLBECK: I want to go to your discussion around the number and size of corflutes. It does become quite a competition—I suppose that's one way to put it—with respect to space and otherwise. How do you think we might manage that? A previous witness this morning talked about the plastic wrap and the signs. Do you think there should be an accepted process around, let's say, the decoration of a booth, for want of a better term?

Mr Edgar: Yes. Environmentally, the corflutes are a bit of a disaster. There should be some expectation that, as much as possible, material can be recycled or is recyclable. Again, I think it should be limited. I don't know how we're going to limit the number of corflutes on polling stations. It's first in, best dressed, which has often been the case, but often the second party comes along and tears down the first one's. I've certainly had that happen a few times. Again, it gets down to general protocol and good manners, I suppose.

CHAIR: Senator Colbeck, we need to move on. We've just got 10 minutes per participant in the community session.

Senator COLBECK: Just one final question: do you think that a number of corflutes per candidate could perhaps be a way to look at it?

Mr Edgar: That sounds like a good idea, but, then again, it depends on how big the electorate is and how many constituents you're covering. There's quite a wide range of sizes of electorates.

CHAIR: Senator Grogan or Dr Ryan, do you have any questions?

Senator GROGAN: Thank you, Mr Edgar, for taking the time. We really appreciate it. You've touched on the role of the AEC and the councils and the parties—do you see a place where the architecture controlling how the booths run on the day and on prepoll is being split between them? At the moment I know the councils mostly have to advise people that they don't like a sign wherever it might be and give them notice to take it down themselves. Do you see a resource issue there between what the AEC is doing and what they should do, and what the councils are doing and what they should do and what the parties are doing and what they should do?

Mr Edgar: Sorry, do I feel—

Senator GROGAN: Do you feel we need to adjust the roles and responsibilities of the AEC and the councils and the parties with regard to how polling booths operate?

Mr Edgar: The AEC are generally responsible for the area inside the fence or inside the doors of the polling station and the immediate access, so there is a divide there, I guess. There's a bit of a limit to what the AEC can do because they've got limited staff on the day.

Senator GROGAN: We've had some people who think that the AEC should have a broader remit outside of the six metres. You've mentioned the role of councils in contributing to keeping things on track, and then there's also the thing about the parties regulating the people on the booths. Do you feel that there's a size piece: should it

be more than six metres, then the council takes over once you get to the fence? What's the regulatory piece for someone to come in and provide a greater level of control, if that's what we believe to be the case?

Mr Edgar: As I understand it, the AEC is responsible for the part up to six metres and I suppose the councils are responsible for the rest of it. In our case, the prepoll was in a public park, so council have obviously got jurisdiction over that and what can be put up in the garden beds or on the heritage fences and the like.

Senator GROGAN: Do you see it that the council should police that?

Mr Edgar: Oh, yes. Yes, I think they've got the capacity to do that.

Senator GROGAN: Okay. That's really helpful. Thank you, Mr Edgar.

CHAIR: Dr Ryan, do you have any questions?

Dr RYAN: Just one, if I may. Mr Edgar, are you aware that rules for different councils around the conduct of elections vary a lot between different local government areas?

Mr Edgar: Sorry, that speaker—

CHAIR: Are the rules between local government areas different around this? Or are you not sure?

Mr Edgar: Not that I can tell.

Dr RYAN: I think it's probably worth just noting that rules around how elections are conducted and supervised vary a lot in different local government areas. Those of us who have more than one LGA within our electorate often see inconsistencies emerging in how the councils administer these issues. That's it from me. Thanks, Chair.

CHAIR: Thanks, Mr Edgar. If you've been asked to provide any additional information, please forward it to the secretariat by 5 December 2025. You'll get a transcript of your evidence by Hansard. If there are any corrections that need to be made, please let the secretariat know. Thanks for your time today. I now welcome Ms Ailis Quinn. To the members online: we need to keep the community statements to just 10 minutes. This is on me for not flagging this earlier. So we'll end up with Ms Quinn at one o'clock. Ms Quinn, do you have any comments to make on the capacity in which you appear?

Ms Quinn: I am speaking today as the former campaign manager for Carol Berry.

CHAIR: Although the committee does not require you to give evidence under oath, I should advise that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false and misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to deliver a statement, and then we might ask a few questions.

Ms Quinn: Thank you to the committee for the opportunity to speak today. As I said, during the 2025 federal election I was the campaign manager for Carol Berry. I was honoured to take this role, despite the short notice and limited resources. I've participated in many elections across the Illawarra, volunteering at federal, state and council elections as well as during the referendum.

Compared with previous elections, the 2025 campaign was challenging. The retirement of Stephen Jones, candidates withdrawing and the Liberal Party changing its candidate late in the campaign all contributed to an unusually large field of 10 candidates. This, in turn, created a surge in volunteers and campaign material at polling booths, as each campaign tried to establish a presence.

During prepoll, I had oversight of booths at Dapto, Albion Park and Shellharbour. It became clear early on that the Liberal Party had far more volunteers than I had ever seen in past elections, often twice as many as any other candidate. It also became apparent that many of the Liberal volunteers were not from the Illawarra. Dapto was a composite booth for Whitlam and Cunningham electorates. It is common for voters to ask which electorate they are in to receive the correct how-to-vote. Many Liberal volunteers could not answer this question and often asked Labor volunteers for help. While some confusion could be attributed to the redistribution, much of this would have been obvious to any local or to volunteers with basic training.

Particularly during prepoll, there were incidents of inappropriate and aggressive behaviour from some Liberal volunteers. At Dapto, several very young volunteers persistently pestered voters who declined their flyers. This made voters very uncomfortable. Because the line often moved slowly, some voters were drawn into arguments or became increasingly uneasy as comments were made about them by the Liberal volunteers. Many voters directly expressed concern to me about the overwhelming number of volunteers present.

Other volunteers and I also experienced Liberal volunteers intentionally standing between us and voters, physically blocking our ability to engage with people or to hand out materials. At both Shellharbour and Dapto,

this behaviour led AEC officials to move all volunteers further back—well beyond the required six metres—to prevent altercations, as some Liberal volunteers were determined to be the final group encountered by voters. One incident at Shellharbour left a volunteer extremely upset. They called me and reported that Liberal volunteers had made comments about their appearance. This volunteer asked to be removed from the roster because they no longer felt comfortable attending.

Throughout the campaign, we also encountered repeated issues with Liberal Party and third-party printed materials lacking the correct authorisation. At Albion Park, AEC officials asked Liberal volunteers to remove handwritten 'honk to boot Albo' signs. The same signs were then brought to the Shellharbour booth, where police attended and directed the volunteers to stop waving these at cars. There were also multiple utes at all booths displaying large Liberal signs, most of which were unauthorised.

During the second week of prepoll, signs appeared at all booths, specifically attacking Carol and the Labor Party. These signs were incorrectly authorised by an M Jonas from Melbourne. Liberal volunteers then attempted to place barely legible corrections over these authorisations after a complaint was made to the AEC. Despite this, on election day a volunteer, again from the Liberal campaign, distributed flyers with the same incorrect authorisation.

While some Liberal volunteers were friendly and generous, others were openly rude. Campaigning in Illawarra has always been a friendly affair. When you stand at polling booths for hours or days, you naturally chat with the volunteers from other parties and you get to know the regulars. While I recognised a few Liberal volunteers, the majority were unfamiliar. As previously mentioned, it was apparent many Liberal volunteers were not from the electorate and did not have a vested interest in the Whitlam electorate or regard for normative local behaviours during elections.

A Labor volunteer reported to me that Liberal volunteers had said that they were not interested in politics but they and others had been asked to attend by their church. I cannot independently verify this but, given similar reports circulating in the news and on social media at the time, it contributed to a sense of discomfort among many people, including voters, some of whom questioned Liberal volunteers directly, making them visibly uncomfortable and defensive.

I want to commend the voters of Whitlam for interrogating the integrity of these deceptive tactics used in the electorate and for standing up when they saw something wrong. However, it should not fall to voters to police campaign behaviour. In many cases, the AEC simply did not have the time, power or resources to properly monitor volunteer conduct or campaign materials. I also believe this contributed to the higher than normal informal vote in Whitlam.

CHAIR: I'd like some clarification on your statements about the M Jonas signage. In your recollection, did that material have party branding on it?

Ms Quinn: Not party branding. It seemed to be specifically attacking the Labor Party, but it wasn't associated with any—

CHAIR: It didn't have a logo on it or anything like that?

Ms Quinn: Yes.

CHAIR: You were saying that, when it was identified as not being correctly authorised, Liberal Party volunteers sought to put the correct authorisation on it.

Ms Quinn: Yes. They stuck a correct authorisation just over the incorrect authorisation.

CHAIR: They were instructed to do that, you would imagine?

Ms Quinn: I'd imagine so. I witnessed them doing this at the Dapto prepolling booth. They did it without the Liberal shirts on but then went to the car and put the shirts straight back on.

CHAIR: Right. You're saying also that a flyer authorised by M Jonas was handed out by Liberal Party volunteers.

Ms Quinn: Yes. I believe they also were not wearing shirts but they had previously been volunteering for the Liberal Party, but I can't 100 per cent remember.

CHAIR: Would you say that there was coordination between whoever M Jonas is and that campaign—

Ms Quinn: I believe so, yes.

CHAIR: and the Liberal Party?

Ms Quinn: Yes.

CHAIR: In the interest of time, I'll give the call to the deputy chair.

Senator COLBECK: Thanks, Chair. Ms Quinn, you talked about the higher number of informal votes. We had evidence from, I think, one of your workers in that electorate earlier. His view was that the number of candidates, in his analysis of the booths, and the requirement to number all the boxes had an impact on the informal vote. Do you have a view on that?

Ms Quinn: I agree that having 10 candidates on the ballot paper did contribute, but I think there was also a level of frustration, as people went in to vote—they didn't want to take any how-to-votes because of the number of people and the overwhelming environment that was the front of the polling booth. They wouldn't take any; therefore, they didn't know they had to number every box.

Senator COLBECK: How do you think the number of people at the booth could be managed?

Ms Quinn: I wouldn't be able to give you a proper answer or solution to how you manage that. Obviously, people are free to run for election if they are eligible to do so. But I do think there should be, in a case where there is an exceptionally long ballot—to make the process of voting less cumbersome for people, I think that there can be ways which that could be managed, whether that's not having to number every box, or other ways in which that can be managed. You're already asking people to come out on their Saturday, so having to take that extra time to consider 10 candidates and number all those boxes, I think, did take a toll and people voted informally.

Senator COLBECK: Do you think that the number of people who are prepolling, and therefore being concentrated into a smaller number of booths, is concentrating some of the issues that you've described?

Ms Quinn: To a degree. We did still find on election day that there were still a vast number of Liberal volunteers at every booth. Some of these issues, in terms of voters being provoked into arguments or feeling uncomfortable, were exacerbated by the lines moving slowly because there was only a certain amount of prepolling booths, and there were a huge number of people prepolling this year.

Senator COLBECK: Should the fact that one party can get more people out to volunteer for them than another be the basis for any restrictions on people's capacity to participate in the election?

Ms Quinn: Not necessarily. If you've got more volunteers than anybody else and you want to show that off, then you're welcome to do so. But, depending on how those volunteers are acting, it does have an impact on the voters and people coming through, and how comfortable they are with being there and being approached by multiple people multiple times.

Senator COLBECK: Okay, I understand. Thank you.

CHAIR: Dr Ryan, do you have any questions?

Dr RYAN: I have just one question. Do you think that changing the rules around the six-metre exclusion zone from polling places would have any impact on poor behaviour, aggressive behaviour and the like around polling places?

Ms Quinn: We did see, particularly at Dapto and Shellharbour, that the whole front entrance to those prepolling booths was pretty manic. It was well beyond those six metres that a lot of the problems were taking place. The AEC obviously doesn't have much control over what is happening beyond those six metres. They did speak to a couple of volunteers where there were complaints. Beyond those six metres where you weren't allowed to stand—there weren't many problems happening within those six metres because you couldn't be in those six metres. But, beyond that, there were issues.

I'm not sure if it's a case of expanding the power the AEC has beyond the six-metre exclusion area, or having councils or someone else control that area, particularly on our prepolling booths that were in council buildings or council land. Most of the problems happened beyond the six metres, and the AEC would just say, 'It's beyond six metres; we can't do anything.'

Dr RYAN: Okay. Thanks.

CHAIR: Thank you, Ms Quinn. Mrs Mansell, do you have any comments to make on the capacity in which you appear before the committee?

Mrs Mansell: I was the Illawarra booth coordinator for the Whitlam election.

CHAIR: Please proceed with your statement, and then we'll go to some questions.

Mrs Mansell: Thank you very much for allowing me to be here today. During prepoll at Centenary Hall in Albion Park, there was an overwhelming presence of young Brethren volunteers supporting the Liberal Party. Their behaviour outside the polling venue caused several issues relating to public access, voter comfort and noise disturbance. A large group of these volunteers congregated on the footpath, effectively blocking access and making it difficult for voters to pass—this I personally witnessed. Groups of three or four volunteers surrounded

voters as they approached the entrance, coming into their personal space and loudly chanting slogans. Even when voters declined to engage with them, one or two volunteers continued to follow them up to the entry steps, which was the six-metre zone.

Additionally, Liberal volunteers created unauthorised signage by writing slogans on the back of official Liberal posters, including 'Toot to boot Albo'. They used these signs to encourage drivers to honk, which resulted in constant noise from car horns and shouting from the volunteers. This created a significant disturbance and a safety concern, as it is an offence under the Roads Act to use a vehicle horn for such purposes. The AEC supervisor and assistant supervisor were required to leave the polling hall to instruct the Liberal volunteers to cease this activity as the noise was so loud inside that staff were unable to hear people going in to vote giving their identifying details. Following the intervention by the officials, the unauthorised signs were removed. Despite this, the behaviour of surrounding and following voters continued for the remainder of the time. It should be noted that these actions were confined to the younger volunteers. The older Liberal volunteers present did not participate in this same conduct.

On election day, I visited multiple polling booths in my role as booth coordinator for the Illawarra and observed similar behaviour at several sites. The most notable instance occurred at the Dapto Ribbonwood Centre. At this location, voters were required to walk through a tunnel of volunteers handing out the how-to-vote cards, with the majority being young Liberal volunteers. The volunteers stood together, leaving little space for voters to pass without engagement. The behaviour that caused the greatest concern to me was the chanting and cheering that erupted when a voter walked through and only took a Liberal how-to-vote card. This conduct created an intimidating and uncomfortable atmosphere for voters and was inconsistent with the expectations of appropriate behaviour around polling places.

CHAIR: We've heard similar evidence. I want to understand what you thought the impact of this behaviour was on voters. Our democracy is really strong because we have very high participation rates. It seems that, up until 2025, voting was a better experience than it was in some electorates this time around. You've come here today; you've taken time, and you want to document this. What do you fear will happen to our democracy if this sort of behaviour becomes the norm?

Mrs Mansell: That our turnout rate will drop. People won't want to come.

CHAIR: Did you get that vibe from chatting with locals, from people who left the booth or from people who approached the booth?

Mrs Mansell: You could tell, as people were coming in, that they were relieved to get past a lot of the things. They would take one of our papers and they would go, 'Oh, thank God, I got through'—that type of thing. They were relieved. Leaving was sometimes just as hard. Depending on the polling booth, they could be leaving, but the volunteers might still think they were going in because of the way the booth was set up. So they would cop it on the way out as well, which made it hard.

CHAIR: Do you think there should be behavioural standards? You've referred to some here. I'm assuming you've been volunteering or participating for a while.

Mrs Mansell: For a few years, yes.

CHAIR: How were you aware of the standards? Was it your experience? Were you trained?

Mrs Mansell: We had training sessions, and I think everybody should go through that.

CHAIR: Seemingly, these volunteers that you've identified either weren't trained or ignored the training.

Mrs Mansell: You can only assume that, yes.

CHAIR: The AEC officials came out and fixed the issue you identified. We've heard evidence about the AEC stopping at the six-metre mark. This time, obviously, they had to come out and instruct because the noise went into the booth. Do you feel that the AEC should be given a bit more responsibility over the polling place—beyond that arbitrary six-metre mark?

Mrs Mansell: I do, because they're there all day. If we're relying on council, that's a phone call. Then you've got to wait, and the behaviour is gone. Because they're present the whole time, it's quicker for them to look at that behaviour and rectify it.

Senator COLBECK: Thanks for your evidence. With respect to the six-metre rule, how that works and giving the AEC more responsibility, if the AEC has to become an authority that is making assessments on behaviour rather than concentrating on the running of the election—including managing unauthorised signs, which I think from your evidence you've said that they did do appropriately—do you think that has the potential to undermine the perceived independence of the Australian Electoral Commission?

Mrs Mansell: I think a lot of the behaviour that occurred beyond the six metres happened because they knew it was beyond the six metres. If there was something in place that said, 'You can't do this,' outside of that space as well, and it could be regulated, I don't think it would occur. So it wouldn't take away from their responsibility of running the election.

Senator COLBECK: I'm thinking more of the independence of the AEC as an organisation. I understand what you're saying about poor behaviour, because it's not acceptable, but, if you are trying to bring the AEC into a policing position, which is outside of the role that they currently have, it does change the perception of the organisation, doesn't it?

Mrs Mansell: From my experience with the various officials, other than that one sign, everything was done by speaking with everybody at once. It wasn't done by isolating one particular person. Even when they took that sign down, they did say to everybody, 'You can't use these types of signs.' I don't see that taking away from their independence because they actually address everybody on the same issue.

Senator COLBECK: Clearly, it sounds as though the AEC have worked very hard to maintain their independent status as part of that. Do you think that the six-metre zone is enough, or should it be larger?

Mrs Mansell: I spent most of my prepoll time at Centenary Hall, and it's actually 12 metres from the door to outside, so it's well beyond the six-metre rule.

Senator COLBECK: Does that assist in managing these issues?

Mrs Mansell: It does to an extent. There was creeping into the zone. We were given clear boundaries, and it did quite often creep in, but that was addressed as well.

CHAIR: Senator Grogan or Dr Ryan, do you have any questions?

Senator GROGAN: I'm fine, thank you very much, Chair.

Dr RYAN: I'm good, thanks, Chair.

CHAIR: Mrs Mansell, thank you very much for your time. Mr Ross Hannah, do you have any comments to make on the capacity in which you appear?

Mr Hannah: I'm a member of the Southern Highlands Branch of the Australian Labor Party.

CHAIR: Thank you. I now invite you to deliver your five-minute statement before we proceed to questions. Just to confirm, you heard that statement before about privilege?

Mr Hannah: I did, yes. I start by saying that there's much more that is right about the system than is wrong. There's huge confidence in the integrity of the Electoral Commission and their competence. For the most part, in my experience—having handed out how-to-votes and done booth captaining and scrutineering since 1975—the major parties mostly know the rules and, if anybody gets out of line, booth captains are generally pretty good at pulling them into line. You can't regulate for good behaviour—not successfully, anyway. As far as the Plymouth Brethren go, if you saw it as an ill and tried to cure that, you'd probably create more problems. It wouldn't withstand a High Court challenge, probably. It would also bar other people who have got, I think, a reasonable right to be involved.

As far as the behaviour of party workers goes, it's mainly that the major parties are okay on the ground because they know the rules. It's often with the minor parties and some Independents, particularly single-issue-type candidates, where there's overenthusiasm from some of their supporters with a lack of knowledge of the rules. What we've run into is that the AEC officials don't have the resources—or perhaps the authority in many cases—to do anything about it, short of calling the police. Most problems are well short, so that would be overkill.

I think that what's needed is for the AEC to perhaps recognise the legitimate role of volunteers handing out how-to-votes as an important part of the electoral system, allowing people to more accurately vote. They don't have to take one and they don't have to follow them, but it does help many people. I also think the signage matters. People become aware that there's an election because they see these signs. At the prepoll at Bowral at the last federal election, several people said, 'I didn't even know it was on until I saw the stuff around the edge.' A couple of times, I've seen an AEC official pay absolutely no regard to the role of people doing what I was doing. They declared the perimeter to be the school fence, with about six entrances. It was impossible to manage. I've seen an AEC official refusing to allow a key to be used by one of the party people to use a lavatory. It's as if we're a nuisance to be tolerated or not tolerated. I think that policy and procedures within the AEC need to address the legitimate role of signage and the work of people handing out how-to-votes.

I think that the committee might look at whether there's any regulatory support required for anything that the AEC recommends, but probably not much change is practical. My experience with behaviour of people on the ground is that I've seen bad behaviour not just from the Liberal Party but from the Labor Party. I've had to ask

certain union officials to have an early mark on occasion. People giving evidence that I've heard so far have talked about the Labor Party, and they're right; we're fairly professional. But I've also seen professional work from Liberal Party volunteers and National Party volunteers. Where you tend to run into problems is with people—One Nation, for example—who are not particularly interested in politics; they're interested in issues. So they don't know the rules.

I'd sum up by saying: leave the Plymouth Brethren alone. The only thing to do about them is to put some light on it and make sure it's reported so people know. They're subject to the same controls as anybody else. If they overstep the mark, so be it. If they don't, we've just got to accept that. I think that's about all I really wanted to say.

CHAIR: Thanks, Mr Hannah. I think you're right in identifying some of the constitutional challenges we might have in applying restrictions. I don't think anyone on this committee would want to restrict people from participating in our democracy. I think it's also important to acknowledge that, with our compulsory voting system, we need to make sure voting is safe, free and fair and that people don't feel intimidated on their way through doing that. You made a statement that the major parties or those who have been in the electoral system for quite some time, like you, know the rules. Was it your experience that some of the issues that were reported on and maybe some of the issues that you saw were from new participants on election day, prepolling and campaigning who either didn't know the rules or ignored them?

Mr Hannah: That's partly the case, but I think the local temperature of the thing is a big factor—where the booth is. Since moving from Sydney to the Southern Highlands 20 years ago, I've found that it seems much more laid back and pleasant. But I've been at ones where it was pretty competitive, with more rudeness and aggression. It'll depend on what the issues are on the day. That will drive the behaviour of the people supporting the candidates.

I think that we're in the hands of AEC's officials in charge of the booths, and some of them are great. I always go and try and establish my booth captain. I meet them, do the signing off on the seals and so forth and assure them that, if there are any concerns, they should let me know and we'll sort it. That works really well. But every now and again, you get some sort of person—I call them a jobsworth—who doesn't want to engage at all and would rather you all go away. I think AEC policies and procedures ought to recognise the legitimate role that we have. The regulating behaviour would be great to the extent it's possible, but I don't see how you can easily regulate for good behaviour and civil interactions.

CHAIR: Do you think your experience has given you an advantage in that respect? Were the AEC officials who were doing the right thing, in your words, the more experienced ones?

Mr Hannah: I think so. But it's also people's own personality. I'm a retired lawyer and bureaucrat, and people come in all shapes and sizes. Sometimes you get somebody there who has got some sort of bee in their bonnet. Mostly people are very good. I've got no problem with them. The people you're dealing with are often not employed by the AEC; they are people engaged for the day or the election. Generally they make the best choice they can, I would imagine.

CHAIR: Do you think more responsibility needs to be given to, say, booth-captain-style volunteers to moderate the behaviour of those in their colour shirts, for example, or third parties associated with them?

Mr Hannah: I think you should look hard at the regulation of signage and that sort of thing and also perhaps extend the purview of the person in charge of the polling place to the broader area. At the same time, I think what they can do is going to be limited because of resources in the AEC and the sheer difficulty of trying to legislate for good behaviour. But I think if they are given, from a policy and procedural point of view, some interest in the broader area and they're able to speak to people and say, 'We don't want you doing this because of that,' then that might be enough. If the person declined a reasonable request and it escalated, perhaps even the police would be involved.

I think a flaw in the system is local government's hands-off approach. They want to be apolitical as well. With prepoll, you've got a chance; the place is open during the week. But, on polling day, there's nobody who can come and do anything about anything. I'd like to see the 'hunger games' end—where the fence gets wrapped and nobody else can get anything in. I think there needs to be some balance where everybody gets a bit of an opportunity to put up their signage. But, in the end, that's hard to regulate as well.

CHAIR: Do you reckon the 'hunger games' leads to that temperature rising a bit, particularly towards the end of the week?

Mr Hannah: Which comes first, you know? Sometimes these things are very competitive and sometimes they're not. Often, I'll go there knowing pretty much what the result will be at that booth by a few per cent. But, when it's close, parties tend to roll in resources and it can get pretty competitive.

Senator COLBECK: Mr Hannah, your evidence has made me smile a bit because your experience shows. You've clearly done a few laps around the buoy on this. I understand your frustration about a polling booth that might have six or seven entrances and trying to appropriately cover them with volunteers. It's quite the task. I've experienced it myself. In terms of how you manage that zone that is immediately outside the six metres—and you would have heard me asking previous witnesses about how we maintain the impartiality of the Electoral Commission; it's a very important role they have, being impartial in the conduct of the election itself—is there a place for a second zone around the booth where the booth workers operate?

Mr Hannah: I think that it's easy enough to regulate the authorisation and the size of signage. It would be a case of having a policy and procedures for polling officials. But, in the end, if people decline to cooperate, there may be a limited amount that you can actually do about it. So I'd say that the person in charge of the polling booth should be encouraged to go out and say, 'There's no room for anybody else to sign; how about you pull it back a bit?' and so forth. If they decline, you mightn't be able to do much about it. But, ideally, a quiet word and a bit of informing people about what the rules and requirements for good behaviour are—not interfering with voters and that sort of thing—is probably about as far as you can go.

Senator COLBECK: You mentioned the role of local government. One of my colleagues on the committee has also asked a question about the differences in local government areas with respect to signs—sizes, locations and things of that nature. Do you see that that is working effectively?

Mr Hannah: Could you repeat that last little bit?

Senator COLBECK: In terms of the role of local government to have control over sign size and location, there's a lot of variation. As a senator, I've got 29 councils, but in the electorate that I mostly work in there are nine. So there are a lot of different rules. Would there be some value in consistency in that process?

Mr Hannah: I don't think we necessarily need more or consistent rules. It's simply a matter of compliance with the rules that exist. The problem that I see is the lack of willingness or the inability of local government to do anything about it, particularly on polling day. Don't forget that they're also bending over backwards to be apolitical. If the Labor Party comes and complains about a Liberal sign, that's suspect right off the bat and vice versa. I think council's non-interference is their best way of not being seen as political. I don't know how you easily solve that problem.

Senator COLBECK: There are a lot of questions in this conversation that aren't easily solvable, as I think you've said in your evidence. Thanks for your evidence.

CHAIR: Senator Grogan or Dr Ryan, do you have any questions?

Senator GROGAN: I have one quick question. Thank you, Mr Hannah. Your evidence has been really interesting. My question is about a code of conduct developed by the AEC with input from all of the parties and Independents and whoever wants to have a say. If that was something that was put together and each—I suppose there are a number of ways you could do it. We've had evidence that it should be the parties that regulate that. The challenge then, of course, is when you've got an Independent or a smaller group that doesn't actually have a party membership in the same fashion. You may come unstuck there. What would you feel would be the usefulness or relevance of having everyone who works on a booth sign the code of conduct?

Mr Hannah: You could potentially go down the path of requiring people to register with the polling official that they're going to be doing it. I think a code of conduct is a great idea, but in the end it may not have many teeth. I think it could be a useful thing to do, even if it hasn't got a regulatory base. I think the AEC's policies and procedures would help. I think it would be good to consult the major parties and the semi-major parties on developing such a code of conduct. But, as you rightly point out, people pop up out of the woodwork for particular issues and at particular times, and they obviously can't be part of that process.

Senator GROGAN: What if you had a third party that wasn't connected to a major party or anything? The one that I and Senator Colbeck have talked about is GetUp, who don't support a particular party; they support an issue. Say we're going to have people on a booth. They would also have to sign up to the code of conduct to be working on that booth.

Mr Hannah: That might be a good way to go. I think it would be a good thing to have a code of conduct. If it's independent, that's fine. The rules should apply to everybody equally in terms of not interfering with voters and so forth.

Senator GROGAN: That way it's a 'one size fits all' approach. It doesn't matter whether you're running or whether you're just an interested party or an interested human. Thank you so much, Mr Hannah. I really appreciate you bringing your experience to us.

CHAIR: Thanks, Mr Hannah. I call Mr Matthew Brown. I'll just read you this. Although the committee does not require you to give evidence under oath, I should advise participants that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to deliver a five-minute statement, and then we'll ask some questions.

Mr Brown: During the 2025 election campaign, I volunteered for Labor in the electorates of Whitlam, Gilmore and Macquarie. On election day, I was stationed at Oak Flats Public School from 9 am to 6 pm with one other Labor volunteer.

When we arrived, about eight male Liberal volunteers were at the main gate, with two more at the side entrance and two or three other minor party individuals. For most of the day, volunteers were friendly and in good spirits, with occasional friendly debate. Still, throughout the day, several things struck me as odd and concerning.

It was expected that there would be a strong presence of Plymouth Brethren individuals at the Whitlam booths, based on what we had experienced during prepoll. On election day, I noticed many of the Liberal volunteers seemed unfamiliar with the candidate, as, when voters pointed out that he had previously served in the New South Wales parliament, the Liberal volunteers either denied it or walked away.

Later in the day, a car of female volunteers arrived shortly before the Liberal candidate appeared at the booth. They appeared to mostly be relatives of the male volunteers and also appeared to be members of the Brethren church. It seemed that they were following the Liberal candidate around the electorate whilst the men stayed at the booths. Other volunteers recounted similar experiences to me throughout the day.

I also noticed that none of the Liberal volunteers voted at the booth that day. Granted, perhaps they had already voted in prepoll or not at all. This confirmed to me that probably all, if not all, of the volunteers at the booth were members of the Brethren church.

Around midday, I moved to the side gate and encountered a voter with extreme views. After I disengaged with the voter, one of the Liberal volunteers approached me and tried to sympathise with him, saying that he understood anti-immigrant sentiments because 'all Arabs have death in their hearts'. Shocked, I disagreed and tried to end the conversation, but he continued expressing support for Israeli actions against Palestinians, totally unprompted. His fellow volunteer joined in, claiming that Arabs were enemies and that the Bible had justified Israel's actions. They continued trying to guilt-trip me, citing family lost to terrorism. I eventually disengaged and walked away and avoided that part of the booth for the rest of the day. In three elections and a referendum, I had never experienced such behaviour from a fellow volunteer.

Back at the main entrance, I spoke with a voter alongside a Liberal volunteer. The Liberal volunteer argued for buying back public assets, a position which I did not believe aligned with policy, and I questioned him about this. He then became aggressive and agitated, pressing me on other policies and insisting that he was an accountant. I refused to debate with him, because of this behaviour, which was alarming to me, and this angered him further until another Liberal volunteer intervened and took him away.

Towards the end of the day, two United Australia Party volunteers arrived and engaged in quite loud conversation. These comments were openly racist, sexist and simply vile, yet other volunteers laughed along.

Throughout the day, I stayed in contact with Labor volunteers at other booths within the Whitlam electorate. They reported similar sexist remarks from volunteers at their booths. At one booth, another volunteer had reported that Liberal Party volunteers were allowed into the booth by the AEC before 7.30 am whilst other volunteers were locked out of the booth. Across the electorate, there were also reports of unauthorised Liberal and anti-Labor signage, some of which was being driven around on utes. This was, in my view, deliberate and a clear breach of the AEC rules.

Simply put, by the end of the day, it was one of the most concerning elections I'd ever experienced. Being verbally harassed twice was troubling, but the deeper concern was the aggression and indifference to our election rules. Whilst most parties had tried to follow AEC regulations, there were materials that were consistently unauthorised or improperly authorised without shame. I found this behaviour deeply concerning for a democratic country and a democratic election.

CHAIR: Thanks, Mr Brown. You've outlined your experience on election day. Did you participate in prepoll or volunteer at prepoll booths in the area?

Mr Brown: Yes, I was in the Shellharbour prepoll booth earlier in the week.

CHAIR: How was that experience, in terms of the voter experience and for you as a volunteer?

Mr Brown: Prepoll was fine. It went off without a hitch. There were a high number of volunteers, but it was cordial. There were no issues during prepoll.

CHAIR: Why do you think that occurred in that way? You and others have talked about there being a large part of the participants that have this cordial nature, and that's obviously been the case in previous elections. What was different about this election that seemed to increase reports of this aggressive and intimidatory behaviour, in your view?

Mr Brown: That's a good question!

CHAIR: That's what we're trying to find out!

Mr Brown: I think there were, obviously, many contemporary issues that were happening around the time of the election that heightened tensions. Some of the comments made obviously stemmed from what was happening overseas and what had happened in Australia previously with the referendum. I think those sorts of issues were bubbling up. Also, the environment we were in at the booth that I was on, on election day, was a small environment, so we were all grouped together around two entry gates, whereas at prepoll we were all spread out.

CHAIR: And do you feel like in your experience on election day there were participants that weren't really aware of the norms on the day? The AEC has identified 130 new groups that participated in the 2025 election. Was it that they didn't have that corporate knowledge of how it's done on election day? Do you think that contributed to some of the concerns that you've raised?

Mr Brown: Yes, I would definitely say that.

CHAIR: And how would we address that? How could that be addressed? Is it up to the party? Is it up to a set of global standards from the AEC? What do you think is best, from your perspective?

Mr Brown: We receive messaging from the party prior to election day about how to behave—about being respectful and engaging respectfully with voters, the AEC and other volunteers—but that messaging doesn't go to everyone, obviously. I think having some sort of guidelines from the AEC about how to engage on election day would be helpful, especially for first-timers.

CHAIR: If there are guidelines and they aren't adhered to, what do you propose happens there? Should the AEC have more authority, or should it be the responsibility of the booth captain from their party to deal with it?

Mr Brown: I think the AEC would probably benefit from having more responsibility in that case, because, when the AEC volunteers would come out, it was a bit of a hands-tied situation. They were just like, 'Guys, please play nice.' There's not much else they can do. So it would help the experience if the AEC had greater power to tell people to leave, if it comes to that, or to move away.

CHAIR: Thanks, Mr Brown. Thanks for your time. Deputy Chair.

Senator COLBECK: Mr Brown, you said that concentration on election day seemed to heighten things. How do you think that that could best be managed?

Mr Brown: To be honest, I'm not sure. On one hand, it's a good thing to have a large number of volunteers showing up and participating in handing out and engaging in the election. But there was that, I guess, stepping over the line, where things were blatantly unauthorised but just shamefully thrown around the electorate. And there was, I guess, that lack of behavioural standards, where people didn't know the typical way to act. So I'm not sure how exactly you manage that.

Senator COLBECK: You talked about the fact that you challenged a Liberal volunteer with respect to some of the things that they said. How do you think that contributed to the demeanour at the booths?

Mr Brown: Yes. I questioned whether what he was saying to the voter was an accurate representation of the policy the Liberal Party was putting out. It was about privatisation. That seemed to fire him up and, yes, he wasn't happy that I'd challenged him.

Senator COLBECK: Do you think he [inaudible] as being aggressive?

Mr Brown: Yes, I do think he was being aggressive. He disengaged with the voter to engage with me more and was towering over me.

Senator COLBECK: I think you misinterpreted my question. Do you think he could have interpreted you challenging him as being aggressive?

Mr Brown: I don't believe so. I don't believe I was aggressive towards him, no.

Senator COLBECK: How do you believe that we legitimately manage someone wanting to express a view?

Mr Brown: Sorry—I couldn't quite hear that.

Senator COLBECK: Sorry. I'll say it again. How do you think that we should manage someone who is wanting to express a view? Whether we think it's right or wrong, how do you think we manage that?

Mr Brown: I don't think that is something that can exactly be regulated. It's more, I think, a lack of experience being on an election-day booth and, I guess, not understanding how the volunteers interact with each other. It just seemed like a first-timer experience. He had been challenged. He might have been embarrassed. And he fired up. To me that was a lack of experience on a polling booth.

Senator COLBECK: When we come back to this question around what the AEC's role is or otherwise—and my concern is maintaining the impartiality of the AEC in conducting the election, rather than trying to manage people's behaviour outside a polling booth—do you think the AEC is the right party to have to manage that? I think the chair might have asked this as well: would it be better if the parties themselves properly managed their volunteers? What would be the most desirable?

Mr Brown: Since, at the end of the day in elections, you're going to have people volunteering for independents, first-time candidates running and minor parties popping up, I think expecting every single party and every single candidate to train their volunteers on how to behave on election day is—it would be nice, but I'm not sure how realistic that is. Having something that maybe can be published by the AEC and then distributed to those candidates, or to the parties—I feel like that could be a more appropriate, more effective way to address that.

Senator COLBECK: Thanks, Chair.

CHAIR: Senator Grogan?

Senator GROGAN: I'm fine, thank you, Chair.

CHAIR: Dr Ryan?

Dr RYAN: Do you think we can limit the involvement of third parties at prepoll and at polling booths, and would doing so be helpful in dealing with some of the aggression that many people experienced at polling sites in 2025?

Mr Brown: Sorry, was the question—

CHAIR: Should we limit third-party involvement, or do you have any views on that?

Mr Brown: I don't think third-party involvement is necessarily a bad thing. There are always going to be different groups who want to campaign on certain issues or support certain parties. I don't think that's necessarily a bad thing. I think it's about the behaviour of different groups and, I guess, how transparent their motives are in engaging in that campaign, that is concerning.

Dr RYAN: Thank you. I have no more questions.

CHAIR: Thanks, Mr Brown, for your time today. Mr Vanderzeil, I invite you to make a statement, and then we might ask you some questions.

Mr Vanderzeil: I'll read partially from the statement that I lodged. I'll begin by stating that I'm a member of the Australian Labor Party. I've voted in every federal election since 1980 and have participated either as a supporter for the distribution of electoral material or as an ALP volunteer worker at almost all of these elections.

I'll talk about the electorate of Whitlam during prepoll. In the lead-up to polling day, I assisted in handing out how-to-vote forms in the New South Wales Southern Highlands town of Bowral during prepoll between 22 April and 2 May 2025. I note that there were a very large number of volunteers for the Liberal Party of Australia at this location, easily outnumbering ALP volunteers. Whilst they were friendly, I asked one specific question of a few of these people when I had an opportunity: are you a party member? The answer was invariably, 'No, I'm just helping.' Some of the volunteers appeared to be with their parents and perhaps not of an age where they could even join as youth members of a political party. On polling day, 3 May, I attended as an ALP volunteer at Hill Top Public School. I asked a similar question to a different group of LNP volunteers, with a similar response: 'No, we're just helping out.'

I'll talk about the various practices I observed during the fortnight. There was the largest number of LNP corflutes I've ever seen, outnumbering other parties by perhaps three to one. LNP corflutes were placed directly in front of ALP material, and at Braemar, in the Southern Highlands, I continuously saw damaged ALP corflutes ripped out of the ground and discarded. We were attentive to having them replaced quickly. Other practices included LNP volunteers forcibly accosting electors by shoving material at them and voicing comments such as: 'I'll put this blue one on top of the red one; you don't need that.' It was most definitely a prescribed activity, directing voters to discard rival political party material. There was also: 'Remember to put the LNP No. 1 and ALP at the bottom.' Other behaviours included spruiking loudly within the six-metre zone of the entrance to the prepoll booths despite innumerable directives by AEC officials for them to stand further away, as other volunteers

were doing. I note the number of occasions that AEC officials were asked by other party volunteers to observe behaviours by LNP volunteers.

CHAIR: On the signs, we've heard a lot of evidence about the increase in the amount of material at booths. South Australia and Victoria have regulations on the number of signs per booth at prepoll and on election day. Do you think that's something that the committee should consider?

Mr Vanderzeil: There is possibly a good reason to do this because of the size. In terms of equanimity at the polling place and the ability to place material from the smallest party to the largest party, it comes down to resourcing. The larger parties will have more material, and they'll probably have more workers who can get there earlier than small Independents, who might find that they've arrived a fraction too late—maybe a crack after sunrise—and almost all of the most prominent positions have been taken. For instance, at Bowral there were huge numbers of LNP corflutes in the lead-up to the actual polling day, during the prepolling period, and it would have taken a large number of human resources to have those strapped onto the fence. If you're a smaller party, you're going to struggle against the onslaught of the numbers of corflutes that I saw in the Southern Highlands.

CHAIR: So you're approaching it more as an equity thing rather than a safety thing or a voter experience thing?

Mr Vanderzeil: Well, the equity part of the available space for the placement of corflutes is something that will have a negative effect on smaller players; it always will. And, given the number of resources that the ALP has, which is a reasonably substantial number of volunteers, we were astonished actually at the number of LNP corflutes that swamped some of the polling places that I saw.

CHAIR: Why do you think there was that big escalation this time compared to last time?

Mr Vanderzeil: Resourcing—corflutes have to be printed; corflutes take money. Where the funding comes from, I don't know. However, one of the contributors to the LNP polling activity has proscribed its members from being registered voters yet it deigns to interfere or act in the political process. I would call that interference in the political process—democratic process. In Australia, it's fairly simple to join the democratic process. You simply have to be over 18 and registered to vote. If you are part of a group that deigns to withdraw from the political process for religious, philosophical or other reasons, in my view, you should be disallowed from acting in any capacity in a polling place, because, as far as I'm concerned, the most known recent participant, the Exclusive Brethren, could be one of just many unknown groups. They are known, but there could be many unknown groups that proscribe their members from registering or indeed may have no interest. They may not even be an Australian citizen. They could be acting in the polling place. Given that we know there are organisations that are doing this actively now, there could be an entire range of unknown groups doing similar things.

CHAIR: So would you characterise some of the increase in participation as disruptive, from your experience? Was it interfering in the process, interfering in voters' experience?

Mr Vanderzeil: Yes, it was definitely affecting voter experience. I noted it at prepoll in Bowral—spruiking, talking over the top of other party volunteers, swamping them, standing close to them, standing in front of them. It was almost entirely from members of or volunteers for the Liberal Party of Australia. There was some behaviour. Behaviours are hard to control because behaviours, of course, are based on people's attitudes, and no-one has time to change someone's attitudes at a that a polling place, so you're rarely going to get changes in behaviours. But this appeared to be an organised process to not-so-subtly intimidate Labor Party volunteers and, in a way, intimidate voters.

CHAIR: What makes you think it was organised?

Mr Vanderzeil: Because the behaviour was replicated. It was reported to me by the members of the Australian Labor Party that this behaviour had been replicated at other polling places that they had visited. It's been directly stated to me, and I noted it on repeated occasions during prepoll and on polling day.

Senator COLBECK: I just want to go to your evidence about excluding people from the electoral process. How do you go about determining that and then applying it? How do you, in the free electoral system we have in this country, exclude somebody from the electoral process? I think the only actual exclusions under the law are for people with certain prison sentences. How do you propose that we exclude somebody else?

Mr Vanderzeil: Well, people can self-exclude from the political process by refusing to register for religious or philosophical reasons. Organisations can do it, and the Exclusive Brethren have yet they have given members to work with the Liberal Party of Australia at polling places. I do not believe political parties should be able to use groups of people or individuals who are not registered voters at polling places or in their political campaigns. Otherwise, if that's allowed then why wouldn't groups of tourists be allowed to come into the country and swamp polling places as volunteers for political parties?

I believe the polling place is sacrosanct area, and the only people who should be able to enter that area to vote are registered voters, and the only people who should be able to work in that area as volunteers are registered voters. People who are underage may be able to assist. People who have retired and not able to vote due to health may be able to assist. But in particular, groups that proscribe their members from registering to vote should not be allowed into a polling place. Parties should be directed to not engage with individuals who formally refuse to register to vote. They should not engage with those individuals to work with them at polling places.

Senator COLBECK: So your evidence is that the Exclusive Brethren or the Plymouth Brethren exclude all their members from voting?

Mr Vanderzeil: That's correct. They're not registered. They're also not registered as a third party nor are they registered as having a pecuniary interest on the Australian Electoral Commission website.

Senator COLBECK: Well, that's a different matter. My understanding, from what I've read, is that the Plymouth Brethren don't exclude their membership from voting. So I'm interested to know where you get your fairly firm view from.

Mr Vanderzeil: From what's been stated to me by Plymouth Brethren themselves, they're disallowed to vote. Now, whether that means they're registered and choose not to vote or are not registered, it has the same effect, in my view.

Senator COLBECK: Well, if they're registered to vote, that limits the evidence that you've already given because someone is actually registered to vote. Anyone can choose not to vote, and you see that come through in other elements of our electoral system with some of the informal votes that we have the delight in scrutineering on election day or blank papers or not turning up to vote.

Mr Vanderzeil: It's always the case that there are people who choose to vote informally, and it is increasing.

Senator COLBECK: So in the circumstance of somebody who is registered to vote but doesn't, who wishes to participate in a campaign or to vote, how do you propose that we might exclude them from participating in the electoral process?

Mr Vanderzeil: I don't. They should be a registered voter to work with the political party. If you work with the political party, you have to be a registered voter. If you choose not to vote or you choose to vote informally, that's your choice.

Senator COLBECK: So the Plymouth Brethren that are registered as voters, how do you quantify them then?

Mr Vanderzeil: Could you say that again, please.

Senator COLBECK: The members of the Plymouth Brethren church who are registered voters, how do you exclude them from participating in the process?

Mr Vanderzeil: You can't. If they are registered voters, they are allowed to participate in the electoral process. That is the only measure: if someone is a registered voter, they are allowed to participate in the electoral process.

Senator COLBECK: So how do you police it?

Mr Vanderzeil: Well, political parties, in my view, need to ensure that volunteers at polling places are registered voters.

CHAIR: Deputy Chair, I will ask you for one last question, if that's alright. We will move on.

Senator COLBECK: I just want to go the signage matter. Do you believe there's value in managing the number of signs, or volume of signs, each particular group can place at a polling booth?

Mr Vanderzeil: I do believe that there is cause for that. The Australian Electoral Commission would virtually need to review every polling place. Some of them are huge. Some of them are tiny. They don't all have great distribution points or placement points for signage. Others are huge and could have more entrances than some political parties could cover. I do believe that there is possible cause to limit based on a zonal assessment at each polling place, rather than a carte blanche application of an equation which may not work. It would need, in my view, to be assessed by the AEC at each potential polling place.

CHAIR: Senator Grogan, Dr Ryan, did you have any questions?

Dr RYAN: I do. You said that you've been involved in a significant number of elections in the past.

Mr Vanderzeil: As a volunteer, yes.

Dr RYAN: We've heard consistently, in this inquiry, people saying that they've experienced aggression and pushback from volunteers and members of campaigns. I'm playing devil's advocate here, but what exactly about

2025 was different from other campaigns? Many people would say it's always been done. In what way was 2025 different?

Mr Vanderzeil: I think there was a lot of contention by the smaller parties. The smaller parties were quite stand-offish with each other and, on occasions, aggressive. One thing that I noted at this election was the change in the behaviour of some volunteers in terms of spruiking or attempting to engage voters in political discourse—sometimes fairly aggressive—rather than just handing out electoral material. This election seemed to be a lot more pushy in terms of the types of conversations that were conducted while material was being handed out.

Dr RYAN: So, with respect, it's more of a gestalt thing—a feeling thing? There's nothing concrete that you can point to about this year's election?

Mr Vanderzeil: Concrete observations? Most observations are anecdotal unless there's some way of recording it for posterity and observing it afterwards. My anecdotal experience is that this election was fairly aggressive. It would equal the level of aggression that I experienced during the election Keating lost. I was spat at a number of times at Wingecarribee Council chambers. People who stated they weren't going to vote Labor then proceeded to spit on me. That's the most aggression I've ever encountered. That was very aggressive, but it was for a short period only, during the morning of the election.

Dr RYAN: That's awful. I'm sorry you went through that. Thank you very much. No further questions.

CHAIR: Thanks, Mr Vanderzeil. Welcome, Mr Graham. Do you have any comments to make on the capacity in which you appear?

Mr Graham: I'm a volunteer with the Australian Labor Party. I'm a member of the Southern Highlands branch.

CHAIR: Please feel free to give your statement, and then we will ask some questions.

Mr Graham: I've been a member of the ALP since March 2024. I've recently been given the opportunity to stand on the executive of our branch, as fundraiser. Commencing in February this year, I was actively involved in the lead-up to this year's federal election. I worked with other branch members organising street stalls, meet-and-greets, banner waving at busy traffic intersections and other associated activities to make the candidate's face known. By the time the election arrived, we were all a little bit tired but equally revved up for the big push to election day.

Prepoll voting was taking place at the Senior Citizens Centre at Corbett Gardens in Bowral, which offers a reasonably large area with plenty of room for all parties to sell our stuff, as it were. From the get-go, it was obvious all parties—including the ALP, who had a large number of volunteers organised, working in four-hour shifts—were vastly outnumbered by the volunteers for the Liberal Party. The first week, each day, they easily had 30 people volunteering to every other party's three or four. Things started easily enough, though a number of us from all the other parties started questioning who the Liberal volunteers were. None were recognised as being local. Many of them were also of a particular age bracket—young, which seemed odd, as they were all volunteering amongst a majority of others who were of retirement age. During the Monday-Friday time slot we were thinking, 'Normally, people of your age group would be at work; you're not—okay.'

As is usually the case, most of the parties' volunteers exchanged pleasant and harmless repartee. We were all respectful of each other and left alone to do our job while voters came and went—all except the Liberal volunteers. They seemed to enjoy crowding the other volunteers as time went on, which, needless to say, raised eyebrows. They also managed to arrive at the polling booth way earlier each day than any of us had been expecting—often before dawn—garnering the best available positions. A marquee was erected directly opposite the entrance to the hall where voting was taking place and only just out of the exclusion zone. As voters at busy times were patiently queuing for entry, one particular Liberal volunteer stood at the edge of this marquee, verbally harassing these voters. It was not welcomed by the voters. The volunteer acted similar to an auctioneer selling property. Four-metre long banners were attached to the fences bordering Corbett Gardens.

Their overall manner at each peak entry point to the venue was that of old-fashioned circus spruikers or used car salesmen, speaking at such volume as to potentially drown out what the other parties' volunteers were discussing with potential voters. They frequently would stand in front of voters, blocking their path. They had many changes in shifts—all with new faces appearing. Those of us who were game enough sought information as to who these people were, such as inquiring as to where in the electorate they resided. Some of their answers were quite comical, which raised suspicions further. It became obvious over time that none of these people lived locally. When asked if they worked in the area, they all said that they did. All of the ones that I spoke to stated that they were employed in family owned businesses which allowed them to take annual leave for the prepoll period.

Several of us tried to just use humour to deflect what was becoming an uncomfortable venture as we stood at the correct distances from pathways et cetera, as these other volunteers literally ran roughshod, ignoring the rules as set out by the AEC. They were barefaced in their intentions. They were frequently told not to stand within the six-metre exclusion zone at the polling booth. Several times, complaints were made to the AEC booth manager by our coordinator on our behalf, and the AEC representative tried to control these volunteers' behaviour. Inevitably, once reprimanded, they would then return to their previous behaviours, clearly unconcerned about any person of authority asking them to respect the rules as such.

Local council was kept informed of what was going on but seemed powerless to take any action to curb what was happening. Because the venue was Corbett Gardens, it was only park rangers who could visit—and that depended largely on what other activities they also had to attend each day. Frequent phone calls were made to our organisers, who then contacted the AEC. We volunteers felt ignored and helpless, expecting the AEC to have given backup where there was none. There were many times we were offered lollies, food, refreshments, even rain ponchos, by the Liberal volunteers. Only a few of the other volunteers accepted these niceties, which were plentiful. We were all equally nonplussed by such goings on, as none of us had ever witnessed such things at polling booths before these incidents occurred. They tried to use humour by telling us, in a very patronising way, that we were taking the whole thing far too seriously and to lighten up. These sorts of comments only made the other volunteers angry and frustrated.

By the time polling day had arrived, it became clear to all that these volunteers were members of the Plymouth Brethren. How that was uncovered, I am unsure, but word did spread quickly. Their volunteers were not embarrassed in the slightest that they had been uncovered—for want of a better expression. They continued with even more zeal than previously displayed. Most of the volunteers representing the other parties were by now feeling resentful of what the Liberal Party appeared to be doing. They had reduced a fair and democratic process to the equivalent of a race of first past the post. Having seen the tactics employed by the Liberal Party volunteers, some other party's volunteers decided to do the same, frequently entering the exclusion zone. The various party volunteer organisers were justifiably frustrated and annoyed that the Electoral Commission had little to no control over these volunteers' behaviour.

In the end, the volunteers of all the other parties felt as though the Liberal Party volunteers, due to the inaction of the AEC, were given free for all to do as they wish, while the rest of us were mindful of the rules as set out by the AEC and reiterated constantly by our area coordinator. While I will still volunteer in the future, I, like many other volunteers, will be thinking twice about what we may encounter, as it felt as though the Liberal Party were given free rein to do as they pleased.

I'd like to add that in spacing of corflutes, advertising and so on, that particular venue had a large amount of external space where advertising could be placed. My opinion is that equal space should be given to all parties who are represented. There should be no priority as to who gets what spot, and that no party should be allowed to monopolise advertising, particularly at the entranceways to any booth.

CHAIR: You mentioned volunteering this time was a uncomfortable experience. You said volunteers felt ignored and helpless, and that this kind of reduced a fair and democratic process to a race to the bottom. I've said it earlier and I'm happy to say it again: I think high participation from voters and volunteers is why our democracy is so well respected and strong. If we get a repeat of 2025, what impact do you think that will have on our electoral process in the long term?

Mr Graham: I think everyone will continue voting but there may be more postal ballots. People will not want to necessarily experience what they experienced this year, so they'll find other ways to go about it.

CHAIR: Was your experience in volunteering mainly on election day or did you do a bit of prepolling?

Mr Graham: I had been prepolling since the 22nd, every day.

CHAIR: Did you find that the most egregious examples or the repeated examples were at prepoll rather than on election day?

Mr Graham: I was at two different venues on polling day. They were smaller venues. But the two weeks prior to that, yes, it was quite aggressive.

CHAIR: What would you like to have seen the AEC do in the circumstances that you've described?

Mr Graham: In retrospect, while we were given as members of the ALP very clear guidelines on behaviour—

CHAIR: By whom—the party?

Mr Graham: Yes. In the lead-up to the election, we all agreed that negativity was out, aggression was out. We're there to represent the ALP and our candidate, and there was no room for any negativity at all, at any time. To my mind, that's something that should just be the norm, not something that has to be requested.

I now think that the AEC should have a role where their guidelines on behaviour of people working at polling booths need to be acknowledged and adhered to.

CHAIR: Similar to there being rules around scrutineering, registering, do you think that should be extended to booth volunteers on the day?

Mr Graham: Yes. I really think there need to be guidelines. There were several instances where people, as I've said, despite being told to leave the exclusion zone, as soon as the booth coordinator returned inside, were back. It was like, 'Okay, well, there's nobody here to stop us now. Let's get back to it.' Continuing to talk to people while they're in the queue, having received the how-to-vote forms, should not be something that is allowed to happen. They've had their opportunity at the entrances to the venue to hand out the HTVs, so to then be escorting people to the line, stopping them from collecting how-to-votes from other parties, for instance, that sort of behaviour should not go on.

Senator COLBECK: Do you think the AEC should have a role outside the six-metre radius?

Mr Graham: The prepoll booth in Bowral where I was working has a large area. It could have been a good idea to have had someone overseeing behaviour around the entrances. I think there were six entrances at Corbett Gardens. It was at times almost funny, frustrating and annoying to watch. At one particular entrance, there was a fellow there working as a Liberal Party volunteer yelling out, 'This will put a smile on your dial.' Then, if there were people, voters, uninterested in taking his how-to-vote, he'd call out after them saying, 'What's wrong? Don't you want cheaper petrol?' and follow them and really go past what he should be doing, to my mind. So, yes, for the AEC in this instance to have said: 'Well, look, hold on. You need to calm yourself down here. Give the person your how-to-vote and let them proceed, and don't call out after them. Don't try and add anything onto it. You've given them your how-to-vote. Leave it at that. If they're willing to engage with you, fine. But if they're not interested, don't then harass them.'

CHAIR: Dr Ryan?

Dr RYAN: I'm interested in the involvement of minors at prepoll in particular. Am I right in saying that the witness—I'm sorry; I didn't catch your name—was describing younger people who one would have thought would normally be in school who were present at prepoll at times when you wouldn't expect them to be there?

Mr Graham: I'm sorry. I wasn't wishing to infer that they were minors necessarily, but they were a curiously young demographic.

Dr RYAN: How did you identify them as being from the brethren? Did any of them admit it, or was it something that you inferred in other ways?

Mr Graham: It was something that was repeated to me further down the track. Volunteers, no matter your stripes, tend to chat and try and have as friendly a relationship as possible—such things as, 'I live in Moss Vale. Whereabouts are you from?' Their answers were always evasive and curious in strange ways. We were all thinking, 'Hold on. Do these guys live locally, or don't they? I don't think so.' And it was probably within the first week that the news spread that they were actually members of the Plymouth Brethren.

Dr RYAN: Was there anything about their physical appearance that was unusual at all, would you say?

Mr Graham: No, not necessarily, except that, to me, it seemed odd that these people had an extraordinary amount of time away from work to spend on prepoll.

Dr RYAN: Yes. As you say, they were all coming from 'family owned businesses'.

Mr Graham: They all came from 'family owned businesses'—the ones that I spoke to.

CHAIR: Senator Colbeck?

Senator COLBECK: You were asking people questions about who they were, where they were from and why they were there. Do you think those are appropriate questions to be asking people?

Mr Graham: They were in general conversation.

Senator COLBECK: Does someone have to explain why they're volunteering for an election?

Mr Graham: No, of course. But, inevitably, during a long day at a prepoll booth, you try and find a means of conversation with the people who you're working with.

Senator COLBECK: What's the problem with having younger volunteers?

Mr Graham: It seemed odd to me that younger people, who you naturally assume would be working or would be employed, were willing to take a fortnight's annual leave purely to work on prepoll.

Senator COLBECK: I'm still trying to work out what the problem with that is.

Mr Graham: None, really.

Senator COLBECK: Why is it a problem if somebody who's young wants to work in a prepoll?

Mr Graham: I wasn't saying that it was a problem. It was just something that struck people as being odd. That's all.

CHAIR: All right. I might end it there. Thanks, Deputy chair. Thanks, Mr Graham. Welcome, Ms Newlove. Do you have any comments to make on the capacity in which you appear?

Ms Newlove: I'm a member of the Australian Labor Party, and I attend the Southern Highlands branch.

CHAIR: I now invite you to deliver your statement before we proceed to questions.

Ms Newlove: My role in the campaign was the coordinator for the Southern Highlands end of the campaign. I was in charge of organising the booths and the booth rosters. I was at prepoll every day from open to close, bar a lunch break, so I did see a lot. Do you want me to read what I saw, even though it's been spoken about?

CHAIR: You could just give us a flavour of your submission. If you would like to, you could look at what you'd recommend as treatment. That might be good. But we do need to understand a little bit about what you've got written there.

Ms Newlove: Basically, I saw some really bad behaviour from Liberal volunteers. They clearly did not understand their role in what they should be doing as volunteers handing out how-to-votes. We had voters being shouted at, saying, 'Why didn't you take our how-to-votes?' I witnessed voters, on exit, being asked who they were voting for—or who they voted for, I should say. It was the sheer volume of people that also added to the pressure of that prepoll. On one day, I counted 30. I don't know how you police that because, sure, the more volunteers you have, the better, but it definitely added to the feeling of suffocation. I and my other volunteers felt like we were being squeezed out of the polling booth by a sea of blue.

The corflutes and the number of A-frames and the size of the A-frames were also very inhibiting. Yes, we could find room to put ours because, as I think Jeremy was saying, it was a big area. But, when they had their four-metre ones taken off the fence, they'd turn them into A-frames. So you could imagine the size of these—they were structures. Yes, they were then forced to remove them, but it just felt like every day there was an issue; every day, there was something we had to deal with as coordinators. And I, personally, felt very—what's the word—alone as far as the AEC. I understood their role, I understood their limitations and I understood that, really, there was nothing they could do, but it was the constant bombardment of witnessing inappropriate behaviour like standing at the gates, which has never been done before. It's a big enough area where you don't need to have people on the gates, but there were two on each gate. They would physically step in front of approaching voters, essentially blocking them from coming in, before they could take their HTVs. Actually, it was a passive aggressive vibe. There were a lot of things said in jest, joking, but it seemed like—well, it felt like—it was an attack on the Labor party and that we were being singled out with ridicule about Anthony Albanese. I've been on many polling booths. I know things happen, but, in most cases, it's collegian. It's quite fun. You can have a chat to people. But this had a very different vibe to it. I'm sorry if I'm raving, because I did plan to read my submission, but I feel like you've heard it all before.

CHAIR: I think that gives us the vibe. You said at the top that you felt like some of these volunteers didn't understand their role. Could you perhaps explain what your role is? What is the accepted way of handing out a how-to-vote card or being a volunteer?

Ms Newlove: I think you should be passive in your role. I think you should be there to greet voters and, as a suggestion, offer them a HTV card. If they wish to engage with you, by all means, come over and have a chat and I would be happy to fill you in on our policy or whatever their question is. But, really, I think our role is just to facilitate the handing out of how-to-votes. I don't think we're there for social comment on other groups, because there are going to be other volunteers who idealistically we completely disagree with. But that's their right, and I'm not about to start debating somebody else's political philosophy, or whatever you want to call it. We are there as a service to hand out how-to-votes, because voters need them, because it is complicated. If they don't want it, that's fine.

CHAIR: How do you think that type of behaviour impacted voters?

Ms Newlove: I received a lot of negative comments from voters about it. They were saying they felt harassed. They thought it was overkill, including the amount of corflutes. Everything they commented on, they used the

word 'overkill'. They felt harassed. They felt suffocated. We all know the expression 'running the gauntlet' when we're going to the polling booth, but this was like some sort of cross-country event. It was horrendous. I really pitied the voters having to walk through that sea of pushy, passive-aggressive people. It was dreadful. And then we had, on top of that, the amount of illegal signage that was around our area that we had no control over on polling day, because council doesn't work on Saturdays.

CHAIR: Was this the non-authorised signage or that M Jonas signage that was mentioned earlier?

Ms Newlove: This was just illegally placed signage on signs like stop signs and speed limit signs all around the actual area. We had no recourse because, as I said, council doesn't work and, of course, the AEC, understanding their role, aren't able to do anything. So these posters or corflutes were left out. There were ones from ADVANCE Australia and there were also unauthorised ones from ADVANCE Australia. They were just sitting there with their messaging all day, and there was nothing we could do about it.

CHAIR: You mentioned you felt alone—

Ms Newlove: Yes.

CHAIR: and that the AEC didn't support you. What type of support would you have liked to see?

Ms Newlove: It's really hard because I understand, listening to everything, that the AEC have a specific role: to run elections. I think one of the things they need to do is extend the area that they are responsible for. It doesn't have to be the entire neighbourhood, but I think it has to be where you enter the property of the polling booth—because, nine out of 10 times, it's within a school or within a council area. Again, I don't have the answer, because how do you get people working for them to come along and actively force participants to remove things or act a certain way? It does come down to training from—

CHAIR: The AEC have a responsibility to increase—not increase but make the voting experience—

Ms Newlove: More pleasant!

CHAIR: more pleasant. Do you feel like that's part of their—

Ms Newlove: I do.

CHAIR: You said 'running an election'. Would you see making voting easier as part of their responsibility as well?

Ms Newlove: I do. I really do. Because, going off our prepoll, I don't think it was pleasant at all. It wasn't a pleasant experience for voters.

CHAIR: Would you be surprised if people were less likely to vote next time?

Ms Newlove: Absolutely—I really do. The other comment I have is that I felt that this behaviour exhibited by the Liberal volunteers was mirrored by some of the minor parties. The thing that gets to me is the Liberal Party know the rules. They need to train their people, just like we do in the Labor Party. But these smaller parties—they don't. They're watching what's going on, and they were emulating them and going into the six-metre zone regularly—frequently! It was like it just didn't exist. It was like it was a suggestion. So I feel it's going to have ramifications on other parties who wish to participate in the future. We need to set an example.

CHAIR: So extend the area and add that the AEC has a responsibility to deliver a safe voting place.

Ms Newlove: Within reason, yes. I still feel there are incidents where the police have to be called. I mean, you don't expect them to go out and break up a fight.

CHAIR: No! Would you support reforms to have volunteers register, like they need to do with scrutineering? Do you think that would help, if it were coupled with a set of guidelines or something like that?

Ms Newlove: I think it would. I don't quite know. It'd be like opening Pandora's box if every single person who wished to volunteer—I guess it'd be like a working-with-children check or something similar, where you'd register and you would receive a set of guidelines or code of conduct. I don't know whether you'd have to sign.

CHAIR: The logistics would be difficult, but it would also—

Ms Newlove: It'd be very difficult, yes. It's very hard to know. I think another contributing factor is the two weeks of prepoll. I think it's too long; I really do. I think, for all parties, especially minor parties and Independents, it would be even worse to try and fill a roster for those two weeks. I think it's just too much pressure on people, and, after the second week, you're tired.

CHAIR: What do you think of more locations, but only for one week?

Ms Newlove: I think that would make it harder actually.

CHAIR: Okay. So just one week?

Ms Newlove: I'm just imagining trying to fill two polling booths. We were fortunate. We've got the one in the highlands. Shellharbour had three, and I really felt for them. I think maybe just a week is better.

CHAIR: Okay. I might leave it there. Deputy Chair.

Senator COLBECK: What would you think would be a reasonable period for prepoll?

Ms Newlove: Personally, I think a week.

Senator COLBECK: Okay. Do you think that that would concentrate more of the electors to election day itself rather than prepoll, which would therefore limit some of the behaviour you've been talking about?

Ms Newlove: I think at the moment it would actually do polling day good because a lot of polling booth numbers have dropped on the Saturday. Yes, it would narrow people's availability to be able to go and vote, but—this is just my personal opinion; I can't talk for others—I do feel like a week gives them ample time. If you work weekends or whatever the reason, I think it does still give you ample time—especially seeing as most polling booths are open till five or 5.30 and they open early. I think it would give you enough time and it would be nice to see polling day be the day again. That's just my personal opinion.

Senator COLBECK: I understand; I understand perfectly. With respect to the behaviours that you've described, how many official complaints were laid?

Ms Newlove: As in complaints to the AEC?

Senator COLBECK: Yes.

Ms Newlove: I personally rang the AEC hotline—I think it was four times. I went into the booth to speak to the AEC officers, honestly, I'd say eight times or something like that. It got to the point where I felt sorry for them when they saw me. You could see their faces—here she is again. I was trying not to be a nuisance because I knew they were under the pump, but I was there for the nine days of prepoll. So, if you spread it out, I wasn't a habitual whiner.

Senator COLBECK: Okay. Thank you.

CHAIR: Senator Grogan and Dr Ryan, do you have any questions?

Senator GROGAN: No, Chair. Thank you. I think you've covered all of my issues.

Dr RYAN: I'm fine, thank you.

CHAIR: All right, thanks very much. Thank you all for your attendance here today. If you've been asked to provide any additional information, please forward it to the secretariat by 5 December 2025.

Committee adjourned at 14:38